



CHAPTER xlvii.

An Act to confer powers upon the Corporation of Rochdale with reference to lands and the acquisition thereof to make further provision with regard to the water passenger transport and markets undertakings of the Corporation to increase the cattle market tolls leviable by the Corporation to authorise the supply of heat by means of hot water or steam to make further provision in reference to the redemption of water annuities the health improvement local government and finances of the borough of Rochdale and for other purposes.

[30th July 1948.]

WHEREAS the county borough of Rochdale is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough acting by the council (in this Act respectively referred to as "the borough" and "the Corporation"):

And whereas it is expedient that further and better provision should be made with reference to the acquisition and user of lands:

And whereas it is expedient to authorise the Corporation to supply heat by means of hot water or steam in the borough:

And whereas it is expedient that the Corporation should be authorised to redeem the annuities created under the provisions of the Rochdale Waterworks Act 1866:

29 & 30 Vict.
c. clii.

And whereas the Corporation are the owners of a markets undertaking and it is expedient to authorise the Corporation to increase the cattle market tolls leviable by them and to confer further power on the Corporation in regard to that undertaking and their water and passenger transport undertakings:

And whereas it is expedient that further and better provision should be made with reference to streets buildings nuisances and sanitary matters and for the local government and improvement of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended:

And whereas it is expedient to make further provision with regard to the finances of the borough as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

23 & 24 Geo. 5. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Rochdale Corporation Act 1948.

Division of
Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands &c.

Part III.—Streets and buildings.

Part IV.—Sewers and drains.

Part V.—Infectious disease sanitary provisions and nuisances.

Part VI.—Entertainments &c.

Part VII.—Markets and weighing machines.

Part VIII.—Establishments for massage or special treatment.

Part IX.—Heating undertaking.

Part X.—Sale of coke &c.

Part XI.—Finance and rating.

Part XII.—Miscellaneous.

Part XIII.—General.

3. The Lands Clauses Acts except sections 127 to 131 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

PART I.
—cont.
Incorporation
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.
26 Geo. 5. &
1 Edw. 8.
c. 49.

(2) In this Act unless the subject or context otherwise requires terms to which meanings are assigned by the Acts incorporated wholly or in part with this Act or which have therein special meanings have in this Act (unless varied thereby) the same respective meanings And—

“The borough” means the county borough of Rochdale;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The town clerk” “the medical officer” “the surveyor” and “the sanitary inspector” mean respectively the town clerk the medical officer the surveyor and any sanitary inspector of the borough and “medical officer” includes any person duly appointed by the Corporation to discharge temporarily the duties of medical officer of health;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and the Town and Country Planning Act 1947;

9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

“Industrial building” has the same meaning as in the Distribution of Industry Act 1945;

8 & 9 Geo. 6.
c. 36.

“Daily penalty” means the penalty for each day on which any offence is continued after conviction;

“The water undertaking” “the passenger transport undertaking” and “the markets undertaking” mean respectively the water undertaking the passenger transport undertaking and the markets undertaking of the Corporation as from time to time authorised;

PART I.
—cont.

“ Weighing machine ” means a weighing machine available for the use of the public for the purpose of ascertaining the weight of any vehicle or the loading thereof;

“ The heating undertaking ” means the undertaking authorised by Part IX (Heating undertaking) of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes wires posts ducts apparatus appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the supply of heat by means of hot water or steam;

“ The parcels service undertaking ” means the undertaking authorised by section 113 (Carriage of parcels) of this Act;

35 & 36 Vict.
c. cxlix.

“ The Act of 1872 ” means the Rochdale Improvement Act 1872;

15 & 16 Geo. 5.
c. xlv.

“ The Act of 1925 ” means the Rochdale Corporation Act 1925;

38 & 39 Vict.
c. 55.

“ The Act of 1936 ” means the Public Health Act 1936 and “ the Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same prior to the Act of 1936;

“ The Act of 1933 ” means the Local Government Act 1933;

7 & 8 Geo. 6.
c. 31.

“ Child ” has the same meaning as in the Education Act 1944;

“ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

1 & 2 Geo. 6.
c. 56.

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

“ The Minister ” means the Minister of Health;

“ Stage carriage ” has the same meaning as in the Road Traffic Acts 1930 to 1947;

41 & 42 Vict.
c. 76.

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;

“ Statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

PART I.
—cont.

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation; ^{38 & 39 Vict. c. 83.}

“ The annuities ” means the annuities created under the provisions of the Rochdale Waterworks Act 1866 or the balance thereof remaining unredeemed for the time being and “ the annuity ” means one of the annuities;

“ Enactment ” means any Act of Parliament whether public general local or private any order or scheme made under an Act of Parliament or any provision in an Act of Parliament or in any such order or scheme;

“ Contravention ” in relation to any enactment byelaw order rule term condition restriction or notice includes a failure to comply with that enactment byelaw order rule term condition restriction or notice and “ contravene ” shall be construed accordingly;

“ The commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive; ^{10 & 11 Geo. 6. c. 49.}

“ The authority ” means the British Electricity Authority;

“ The board ” means the North Western Electricity Board.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

LANDS &c.

5.—(1) Whenever it becomes necessary for the Corporation or any of their officers servants contractors or workmen to enter examine or lay open any lands (not being lands on which buildings for manufacturing purposes are erected) for the purpose of making plans surveying measuring taking levels ^{Entry on lands for purpose of survey &c.}

PART II.
—cont.

or making trial holes and the owner or occupier of such lands refuses to permit the same to be entered examined or laid open for the purposes aforesaid or any of them the Corporation may after written notice to such owner or occupier of their intention to make such application apply to a court of summary jurisdiction for an order authorising the Corporation to enter examine and lay open the said lands for the purposes aforesaid or any of them.

(2) If sufficient cause is shown for the application the court may make an order accordingly and on such order being made the Corporation or any of their officers servants contractors or workmen may at all reasonable times between the hours of nine in the forenoon and six in the afternoon enter examine or lay open the lands mentioned in such order for such of the said purposes as are therein specified without being subject to any action or molestation for so doing:

Provided that except in case of emergency no entry shall be made or works commenced under this section unless at least 'twenty-four hours' notice of the intended entry and of the object thereof be given to the occupier of the lands intended to be entered.

(3) The Corporation shall at their own expense make good and restore to their former condition any lands laid open by them or their officers servants contractors or workmen and shall make good to the reasonable satisfaction of the owner or occupier of the lands entered all damages or loss sustained by him in consequence of such entry examination or laying open and any dispute as to the amount of damage or loss so sustained as aforesaid shall in default of agreement be assessed by a court of summary jurisdiction and the amount so assessed shall be recoverable in such court.

(4) The Corporation shall not exercise the powers of this section in respect of any lands belonging to the commission and used by them for the purposes of their railways without their consent.

Recovery of
deposit under
Lands Clauses
Act.

6. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 it shall be lawful for the High Court at any time not being less than twelve years after any sum has been deposited by the Corporation in the bank in pursuance of section 76 of that Act or deposited by the Corporation in the bank by way of security in pursuance of section 85 of that Act to order upon application by the Corporation that the money so deposited or the fund in which the sum shall have been invested together with the accumulations thereto shall be repaid or transferred to the Corporation:

Provided that upon the application of any party making claim to the money deposited as aforesaid or any part thereof or to the lands in respect whereof the same shall have been deposited or any part of such lands or any interest in the same, the High Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section or any part thereof to be paid to the person making such claim and may make such other order in the premises as to the court shall seem fit.

7.—(1) The Corporation may accept a surrender of any lease or letting granted by them of lands acquired under the powers of any enactment for the time being in force and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of the lands as aforesaid. Powers with reference to leases of lands.

(2) The Corporation may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Corporation of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Corporation in their discretion.

(3) Provided that any lease granted by the Corporation in pursuance of this section shall be subject to similar conditions and limitations as are prescribed in section 76 (Retention and disposal of lands) of the Act of 1925 with respect to leases granted thereunder.

8. The Corporation on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation of easements &c.

9.—(1) The Corporation may advance money to the purchaser or lessee of any lands acquired from or leased by them for the purpose of enabling or assisting him to erect buildings on such lands provided that any advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of such purchaser or lessee in the lands with the intended buildings erected thereon. Power to Corporation to advance money for erection of buildings.

PART II.
—cont.25 & 26 Geo. 5.
c. 40.
9 & 10 Geo. 6.
c. 20.

(2) Every such advance shall be repaid with interest at a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935 and section 6 of the Building Materials and Housing Act 1945 within such period not exceeding thirty years from the date of the advance as may be agreed upon between the Corporation and the purchaser or lessee.

(3) The repayment may be made either by equal instalments of principal or by an annuity of principal and interest combined and all payments on account of principal and interest shall be made at such periods not exceeding half a year as may be agreed between the said purchaser or lessee and the Corporation.

(4) Any such purchaser or lessee to whom an advance has been made may at any of the usual quarter days after one month's written notice and on paying all sums then due on account of interest repay to the Corporation the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the instrument hereinafter referred to) or a multiple of one hundred pounds (or such less sum as aforesaid) and where the repayment is made by an annuity of principal and interest combined the amount so outstanding and the amount by which the annuity will be reduced where a part of the advance shall be paid off shall be determined by a table to be annexed to the instrument securing the repayment of the advance.

(5) Before making any advance under this section the Corporation shall be satisfied that the repayment to them of the advance is secured by a mortgage of the building in respect of the erection of which the advance is made and of the land upon which such building is to be erected or of the lessee's interest therein to the Corporation subject to the right of redemption by the said purchaser or lessee and requiring the said purchaser or lessee to keep the building insured against fire to the satisfaction of the Corporation and to produce the receipt for the premium paid in respect of such insurance to the Corporation when required by them and to keep the building in good repair.

(6) The Corporation shall have power to enter the building in respect of the erection of which any advance is made by them by any person authorised by them in writing for the purpose at all reasonable times for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are complied with.

(7) The said purchaser or lessee may with the permission of the Corporation (which permission shall not be unreasonably withheld) at any time transfer his interest in the building

in respect of the erection of which such advance is made and the land upon which the same is erected but any such transfer shall be made subject to the foregoing provisions of this section.

PART II.
—cont.

(8) Without the consent of the Board of Trade no advance shall be made under subsection (1) of this section in respect of any industrial building nor shall permission be granted for the transfer of an interest in any industrial building under subsection (7) of this section.

PART III.

STREETS AND BUILDINGS.

10.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Corporation so to do construct the carriageway of such new street or such part of the new street as may be required by the Corporation in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

No buildings
to be erected
until street
formed.

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Corporation shall not be empowered to require a length of more than one hundred yards to be constructed by one operation.

(2) Where under this section a person is required to construct the carriageway of a new street or any part thereof or to sewer such a street or part thereof the works shall be executed to the satisfaction of the Corporation and so as to comply with such specification as the Corporation may reasonably require:

Provided that this subsection shall not apply if the Corporation are satisfied that the new street is not intended to be dedicated to the public.

(3) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force within the borough.

55 & 56 Vict.
c. 57.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

11. Section 17 of the Public Health Acts Amendment Act 1907 shall in its application to the borough be read and have effect as if subsection (2) of the said section were omitted therefrom.

Amendment
of section 17
of Public
Health Acts
Amendment
Act 1907.
7 Edw. 7.
c. 53.

PART III.

—cont.

As to
termination
of new streets.

12.—(1) The Corporation may on the deposit of a plan and sections of a new street in pursuance of any byelaw for the time being in force by order prohibit the erection or retention on land belonging to the owner of the land upon which such new street is proposed to be constructed or laid out of any wall fence hedge or other obstruction at either end of such new street in order to secure means of communication between such new street and any other street or intended street or for the purpose of securing an adequate opening at either end of the new street:

Provided that such prohibition shall not become operative until the streets on both sides of such wall fence hedge or other obstruction shall become highways repairable by the inhabitants at large.

(2) If any person acts in contravention of any order made by the Corporation under the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Rounding of
corners at
street
junctions.

13. The powers conferred upon the Corporation by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety either (i) be splayed off and the kerb line of the street rounded off so as to be coincident with the arc of a circle tangential to the adjacent kerb lines of the two streets and having such radius as may be determined by the Corporation or (ii) be laid out in such other manner as the Corporation may reasonably require.

For protection
of Postmaster-
General.

14.—(1) If in the exercise of the powers conferred by section 13 (Rounding of corners at street junctions) of this Act the Corporation require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(2) If in consequence of the exercise or intended exercise by the Corporation of the powers conferred on them by the said section 13 the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any street affected by the exercise or intended exercise by the Corporation of the said powers the Postmaster-General may himself make such alteration in such telegraphic line as he deems

necessary or expedient and the Corporation shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof:

Provided that—

(a) before making such alteration the Postmaster-General shall give notice to the Corporation containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;

(b) the Corporation may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Corporation is to be carried out.

(3) In this section the expression “alteration” has the same meaning as in the Telegraph Act 1878.

15.—(1) If the Corporation shall by resolution determine that any stall structure or other erection on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street. Provision as to forecourts.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

16. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects streets (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools Sunday schools public halls public baths public parks recreation grounds playing fields alleyways and passageways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such streets as under section 149 of the Public Health Act 1875 are exerciseable by them as respects Power to place fences near school entrances &c.

PART III.
—cont.Restrictions
on rights of
breaking up
streets.

streets so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

17.—(1) If not less than three months before commencing any work involving the closing to vehicular traffic of any street or part of a street either absolutely or to the extent of one-third or more of the width of the carriageway thereof the Corporation shall give notice in writing of their intention to execute such work to all statutory undertakers having powers to break up that street then when such work has been executed by the Corporation it shall not be lawful for any such undertakers within twelve months of the completion of such work to break up the street or part of a street so closed without the consent of the Corporation which consent shall not be unreasonably withheld and the Corporation may if they think fit and without prejudice to their other rights and powers attach to any consent given under this section such conditions as may be reasonable with respect to the times at which and the period within which the work of the undertakers shall be executed and completed:

Provided that as respects any work executed by any undertakers which but for the provisions of this section would have been lawfully executed nothing in this section shall deprive such undertakers of any right or immunity as between themselves and any person other than the Corporation to which but for the said provisions such undertakers would have been entitled in respect of such work.

(2) Any dispute or difference which may arise between the Corporation and any undertakers under the provisions of the preceding subsection shall be determined by arbitration.

(3) Nothing in this section shall prevent any such undertakers as aforesaid from carrying out extending or enlarging works in any street in case of emergency or prevent any such undertakers from carrying out any works necessary to enable them to perform their statutory duties as such undertakers or their obligations under any contract subsisting at the date of the giving of the notice by the Corporation in default of which they would be liable to any penalty or damages or from making altering repairing extending enlarging or disconnecting communication pipes or service connections or laying service lines between premises and distributing mains or altering repairing extending enlarging or disconnecting any service line or from laying mains or pipes for the supply of property not previously supplied with gas or electricity In this subsection the expression "service line" has the meaning assigned thereto by the schedule to the Electric Lighting (Clauses) Act 1899.

18.—(1) In any case in which plans and particulars of the proposed development of land are required to be furnished to the Corporation the Corporation as a condition of their approval thereof may require the owner of the land upon which any new street is to be laid out to undertake to pay and to give security for the payment of any expenses which may be incurred by the Corporation in executing any private street works with respect to such street or any part thereof and such owner or his successors in title shall not lay out such street unless any undertaking and security required by the Corporation shall have been given.

(2) If any person shall offend against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

19.—(1) In any street not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves defray the cost of the repairs out of the general rate fund:

Urgent repairs
of private
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds per one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any enactment for the time being in force within the borough relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

20.—(1) Where the termination of a new street not being a highway repairable by the inhabitants at large abuts on any highway so repairable and the use of such street involves passage across or interference with any part of such highway the Corporation may require the person by whom such street has been or is being laid out or constructed to construct across such part of the highway a carriage-crossing of such materials and in such manner as they may prescribe.

Carriage-
crossings at
ends of private
streets.

(2) Not less than twenty-eight days before prescribing the manner in which a carriage-crossing shall be constructed under subsection (1) of this section the Corporation shall give notice thereof to any statutory undertakers any of whose mains pipes or apparatus are for the time being situate in or under such carriage-crossing and shall if requested by such undertakers require the lowering of any such mains pipes or apparatus to such depth below the surface of the carriage-

PART III.
—cont.

crossing not exceeding four feet measured from the upper side of any such main pipe or apparatus as the undertakers may prescribe and the work of such lowering may be carried out by the undertakers and the cost reasonably incurred by them in so doing shall be repaid to them by the Corporation who may recover the same from the person and in the manner from whom and in which expenses are recoverable under subsection (3) of this section.

(3) If the Corporation require the construction of any carriage-crossing across any part of a highway repairable by the inhabitants at large they may execute such works as may be necessary to secure compliance with such requirement and recover the expenses of so doing from the person by whom such street has been or is being laid out or constructed.

(4) Nothing in this section shall impose on the person by whom such street has been or is being laid out or constructed any obligation to maintain any crossing constructed in pursuance of a requirement under this section.

(5) Nothing in this section shall extend or apply to any such new street as aforesaid in any case where a certificate of the town clerk or surveyor made before the passing of this Act certified that such street had before the thirty-first day of July one thousand nine hundred and forty-eight been completed in accordance with plans and specifications approved and required by the Corporation as a condition of declaring the street to be a highway repairable by the inhabitants at large but had not at that date been taken over by the Corporation.

Planting of
trees in private
streets.

21. The Corporation when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done

in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

PART III.
—cont.

22.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall on any highway or in any open space to which the public have access—

Damage to trees &c. on highways and in open spaces.

(a) remove or cut any turf; or

(b) pluck any bud blossom flower or leaf of any tree shrub or plant or remove cut or displace any plant if the tree shrub or plant has been planted for the purpose of improving the amenities thereof and adequate notice stating the effect of this paragraph is conspicuously placed on such highway or open space.

(2) Any person offending against this section shall be liable to a penalty not exceeding forty shillings and to the payment of such further amount as appears to the court reasonable compensation for any damage so committed which last-mentioned amount shall be paid to the person having control of the highway or open space.

(3) Proceedings in respect of an offence created by this section shall not without the written consent of the Attorney-General be taken by any person other than the party aggrieved or where the offence relates to a highway repairable by the inhabitants at large the Corporation.

(4) Nothing in this section shall affect any right of any persons authorised by any Act or Order having the force of an Act to open or break up any street or road or any land for the purpose of laying making altering repairing or renewing any main pipe sluice weir electric line duct substation transformer station street-box drain or other apparatus.

(5) Nothing in this section shall apply to any open space vested in or under the control of the Corporation or the National Trust for Places of Historic Interest or Natural Beauty.

(6) Nothing in this section shall render any person liable to more than one penalty for the same offence.

23.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall if required by the Corporation and if it is reasonably practicable at his own expense build up those

Erection of buildings to greater height than adjoining building.

PART III.
—cont.

flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised or the top of such last-mentioned building whichever may be the higher.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Height of
chimneys.

24.—(1) Every chimney erected after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Corporation to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably require having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Corporation may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

10 & 11 Geo. 5.
c. 80.

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 the Corporation shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Maintenance
of footpaths
&c.

25.—(1) The owner of every house fronting adjoining or abutting on a highway which is not repairable by the inhabitants at large shall maintain the footpath on the frontage of such house and the approach to such house from the highway (exclusive of so much of such footpath or approach as passes through the garden of or through any land within the curtilage of such house) in accordance with the reasonable requirements of the Corporation.

(2) Any person who contravenes the provisions of this section after the expiration of a period of twenty-eight days (or such longer period as may be allowed by the Corporation) from the receipt of notice from the Corporation shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

26.—(1) Where the Corporation decide to serve a notice under section 9 of the Housing Act 1936 and upon consideration of a report from any of their officers or other information in their possession they are satisfied that the paintwork or other decorations of the house in respect of which such notice is to be served has been materially damaged as a result of a defect which renders such house in any respect unfit for human habitation they may in such notice if they think it reasonable so to do require the person having control of the house to paint paper or distemper with oil-bound water paint such parts of the said house as have had the paintwork or other decorations damaged as aforesaid as if such painting papering or distemping were a work which could be required to be executed under section 9 of the Housing Act 1936.

Further provision as to working-class houses. 26 Geo. 5. & 1 Edw. 8. c. 51.

(2) On an appeal to the county court against any requirement to paint paper or distemper under the provisions of this section the county court judge shall take into consideration—

- (a) if the person upon whom the notice is served is a lessee or agent for a lessee the length of the unexpired period of the lease;
- (b) the period for which the house is likely to continue occupied;
- (c) the expenditure incurred by the person having control of the house or the owner during the preceding three years upon the house;
- (d) whether the condition of the paintwork or other decorations is or is not wholly or partly due to the wilful default or neglect of the tenant.

27.—(1) The Corporation may make and enforce with respect to houses not being houses which are occupied or are of a type suitable for occupation by persons of the working classes byelaws for the purposes specified in paragraphs (a) to (f) (inclusive) of subsection (1) of section 6 of the Housing Act 1936 and any such byelaws in addition to any other penalty may prohibit the letting for occupation by members of more than one family of any such house unless the byelaws are complied with subject in the case of houses so let or occupied at the time when the byelaws come into force to the allowance of a reasonable time for the execution of any works necessary for compliance with the byelaws.

Power to make byelaws with respect to houses let in lodgings or occupied by more than one family.

(2) The operation of any byelaws made under this section for any of the specified purposes shall be limited to houses let in lodgings or occupied by members of more than one family.

PART III.
—cont.

(3) Section 7 of the Housing Act 1936 shall apply to byelaws made under this section as if they were byelaws made under that section and the Corporation were the local authority by whom the byelaws are to be enforced.

(4) For the purpose of any byelaws made under this section where any house has been let in lodgings or for occupation by members of more than one family without the consent or connivance of the owner of such house the person so letting such house shall be deemed to be the owner.

Powers of
inspection.

28.—(1) In exercising any powers of entry upon and inspection of any building or works in course of construction or repair the surveyor or the medical officer or the sanitary inspector or their assistants shall have from the builder of or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works.

(2) Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor medical officer sanitary inspector or their assistants in the use of such ladders scaffolding and plant as aforesaid shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Amendment
of section 83
of Act of 1925.

29. Section 83 (Restriction on placing rails beams &c. over streets) of the Act of 1925 shall be read and have effect as if the words “ any crane or apparatus for hoisting or lowering goods or any other like projection or ” were inserted after the word “ place ” in subsection (1) of the said section.

As to neglected
sites.

30.—(1) For the purposes of this section—

“ neglected site ” means the site of a demolished partly demolished or ruinous building which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood;

“ owner ” in relation to a neglected site means a person other than a mortgagee not in possession who is for the time being entitled to dispose of the fee simple of the neglected site whether in possession or in reversion and includes also a person holding or entitled to the rents and profits of the neglected site under a lease or agreement the unexpired term whereof exceeds three years.

(2) A court of summary jurisdiction on complaint by the Corporation may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building or any part thereof or from the ruinous condition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected site and execute the order and may sell or dispose of any such rubbish removed by them.

PART III.
—cont.—

(4) Where the Corporation sell any rubbish under this section they shall pay the proceeds to the person to whom the rubbish belonged after deducting the amount of any expenses incurred by them in connection with the removal of the rubbish.

PART IV.

SEWERS AND DRAINS.

31. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

As to evasion
by owners of
sewerage
expenses.

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land abutting on a street within the meaning of section 171 (Corporation may charge owners of lands abutting on street with expenses of new sewer therein) of the Act of 1872; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said section;

then the court shall order that the owner of the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of shall be charged with the payment of such expenses and thereafter such expenses may be recovered to the same extent and in the same manner as any expenses charged under the said section may be recovered.

32. Section 24 of the Act of 1936 shall in its application to the borough be read and have effect as if the following were substituted for the proviso to subsection (1) of that section:—

Recovery of
cost of
maintaining
sewers.

“ Provided that unless in the opinion of the surveyor the medical officer of health or any sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall be given to the owners of any premises known by the local authority to be served by the length of sewer in question not less than seven days before the work is commenced and the local

PART IV.
—cont.

authority shall consider any representations as to the need for and reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice."

Abandoned
drains to be
cut off.

33.—(1) Where any person shall reconstruct or lay in a new position or permanently discontinue the use of any drain which communicates with any sewer or other drain such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end.

(2) Such portion of discontinued or unnecessary drain shall if reasonably required by the Corporation having regard to the circumstances of the case be taken up destroyed or filled in with concrete or in such other manner as may be specified by the Corporation in any such requirement.

(3) Any person who contravenes the provisions or fails to comply with the requirements of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

As to
defective
drains &c.

34.—(1) In any case where it appears to the surveyor the medical officer or the sanitary inspector that any drain private sewer water-closet or soil-pipe or any water-pipe connected to the flushing apparatus of a water-closet is stopped up the surveyor the medical officer or the sanitary inspector shall give notice to the owner or occupier of the premises to remedy the defect and if such notice is not complied with within forty-eight hours from the service thereof the Corporation may carry out the work necessary to remedy the defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

Further power
to examine
and test drains
&c. believed to
be defective.

35. The powers of section 48 of the Act of 1936 may be exercised in pursuance of any general or special directions given by the Corporation in any case where it appears to the surveyor the medical officer or the sanitary inspector that there are reasonable grounds for believing that a sanitary convenience drain private sewer or cesspool is in such a condition

as to be prejudicial to health or a nuisance or that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water.

PART IV.
—cont.

36. The Corporation at the request of the owner or occupier of any premises may undertake the cleansing of any water-closets drains sinks or gullies in or connected with such premises for such remuneration as may be determined by the Corporation and the amount thereof shall be recoverable from the person by or on behalf of whom the request is made.

Cleansing of
sinks and
gullies.

PART V.

INFECTIOUS DISEASE SANITARY PROVISIONS AND NUISANCES.

37.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be
furnished in
case of
notifiable
disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

38. If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Entry into
premises
in case of
disease.

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

39.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

Restrictions on
attendance at
schools and
places of
assembly.

- (a) who is or has been attending any school or any part thereof which for the time being is closed by order of

PART V.
—cont.

the Corporation or of the education committee of the council with the view of preventing the spread of a disease to which this section applies; or

(b) who is suffering from a disease to which this section applies; or

(c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Act of 1936 and any other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease.

(3) In this section the expression " day school " means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Power to close
schools and
exclude
children from
entertain-
ments.

40.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Act of 1936 and any

other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease.

(4) In this section the expression " day school " means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

41. If any person at the request of the Corporation or the medical officer stops his employment for the purpose of preventing the spread of a notifiable disease or of a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 or of food poisoning the Corporation may make compensation to him for any loss occasioned by reason of such stoppage.

Compensation to persons for ceasing employment to prevent spread of disease.

42. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the borough to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to order alteration of chimneys.

43. Section 240 of the Act of 1936 shall operate so as to include the making by the Corporation of byelaws for requiring the exhibition or placing in a conspicuous part of any room in a common lodging-house of a copy of any byelaws applicable thereto and of a placard setting forth the superficial area and the accommodation thereof.

Byelaws relating to common lodging-houses.

44.—(1) The Corporation may make byelaws for limiting or prescribing the places where the tipping of dust spoil or refuse may or may not take place for regulating such tipping and for prohibiting the use of any dust spoil or refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

Byelaws as to tipping refuse.

(2) The byelaws made under this section may contain provisions for imposing on persons offending against the byelaws penalties recoverable on summary conviction not exceeding fifty pounds for each offence and a daily penalty not exceeding ten pounds.

PART V.
—cont.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Act of 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 (inclusive) and section 100 of that Act shall apply accordingly:

Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Act of 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for continuance of his offence after conviction and to a penalty under section 95 of the Act of 1936 (as so applied) for failing to comply with an order or contravening an order.

(4) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by the commission for the purpose of constructing widening or maintaining any railway canal dock or wharf works.

(5) Nothing in this section or in any byelaw made thereunder shall extend to the tipping by the authority of any dust spoil or refuse or the use of any refuse tip on any land for the time being belonging to them and forming part of the site of or used in connection with a station for generating electricity.

Prohibition on
sale of
verminous
articles.

45.—(1) No person shall—

(a) prepare for sale;

(b) sell or offer for sale; or

(c) deposit for the purpose of sale or preparation for sale;

any furniture mattress bed-linen clothing or similar article (in this section called "article") if the same is to his knowledge infested with bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

(2) If a person contravenes the provisions of this section he shall be liable to a penalty not exceeding five pounds and the Corporation upon a certificate of the medical officer or the sanitary inspector may remove any such verminous article and cause the same to be cleansed purified disinfected or destroyed as the case may require and may recover the cost of so doing from such person.

(3) (a) The medical officer and the sanitary inspector may enter the premises of any dealer in which any article is sold or exposed for sale for the purpose of examining whether there be any contravention of the provisions of this section or for the purpose of removing any verminous article.

(b) Every dealer who refuses to permit the medical officer or the sanitary inspector to enter any premises or make any inspection which he is authorised under the provisions of this section to enter or make or obstructs him in the execution of his duty under such provisions shall be liable to a penalty not exceeding five pounds.

(4) For the purposes of this section—

“ preparation for sale ” shall not include disinfestation;

“ dealer ” means any person who trades or deals in any of the articles referred to in this section.

46.—(1) As from the commencement of this section every person who shall carry on the trade or business of a hair-dresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose. Registration of hairdressers and barbers and premises.

(2) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section displayed in the registered premises.

(4) (a) Any officer of the Corporation or other person duly authorised in writing in that behalf by the Corporation and if so required exhibiting his authority shall at all reasonable times be afforded by the person registered full and free power of entry into the registered premises for the purpose of inspecting such registered premises and examining whether there is any contravention of the provisions of this section or any byelaw made thereunder and any such officer or person as aforesaid shall have the like power of entry into any premises in which the Corporation may have reasonable cause to suppose that the said trade or business is being carried on:

Provided that the powers conferred by this subsection of entering premises for the purpose of examining whether there is any contravention of any byelaw made for the purposes

PART V.
—cont.

mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer or person except a qualified medical practitioner in the employment of the Corporation or the sanitary inspector.

(b) Every person who refuses to permit any officer or authorised representative of the Corporation to enter or inspect any premises which such officer or authorised representative is authorised under the provisions of this section to enter or inspect or obstructs any such officer or representative in the execution of his duty under such provisions or under the provisions of any byelaw made under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(5) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on is not registered in accordance with subsection (1) of this section or who contravenes any of the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the cancellation or suspension of the registration.

Application of
Part III of
Act of 1936 to
statutory
undertakers.

47. For the removal of doubt it is hereby declared that without prejudice to the provisions contained in any other part of the Act of 1936 the provisions of Part III of that Act shall in the borough apply to the premises of statutory undertakers.

As to provision
of external
doors.

48. The power of the Corporation to make byelaws under paragraph (i) of subsection (1) of section 61 of the Act of 1936 shall extend to enable the Corporation to make byelaws requiring a building the erection of which is commenced after the passing of this Act to be provided with at least two doors in the external walls of the building.

Separate
dwellings to be
provided with
food storage
accommo-
dation.

49. For the purposes of section 94 (Sufficient and proper food storage accommodation to be provided) of the Act of 1925 the expression "dwelling-house" shall include any part of a building which is occupied or intended to be occupied as a separate dwelling and the conversion of a building into two or more separate dwellings shall be deemed to be the erection of a dwelling-house.

Byelaws as to
inspection
of meat.

50.—(1) If and when the Corporation shall have put into force a system of marking meat under the powers of Part III of the Public Health (Meat) Regulations 1924 they may make and enforce byelaws for preventing meat or any part of the

carcase of an animal brought into the borough and intended for food from being offered for sale or sold or deposited for sale or for preparation for sale until after inspection by an officer of the Corporation and for requiring any such meat or part of such carcase to be taken for inspection to such place as may be specified in the byelaws.

(2) No byelaw made by the Corporation under subsection (1) of this section shall apply to meat or any part of a carcase to which the Public Health (Imported Food) Regulations 1937 apply or which has been inspected and passed as fit for food by the medical officer of health for the district in which the animal has been slaughtered or by a duly qualified inspector being an official of or authorised to act on behalf of the sanitary authority of such district but the Corporation shall be entitled to require reasonable proof that the meat has been inspected and passed as aforesaid.

(3) With a view to facilitating the carrying into effect of any byelaws made in pursuance of this section an officer of the Corporation may with the consent of the local authority concerned enter any slaughter-house which is situate outside the borough but within a circle having a radius of six and a half miles from the town hall of the borough for the purpose of inspecting any carcase or any part thereof intended for sale or consumption in the borough.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder. 1 Edw. 8. &
1 Geo. 6.
c. 70.

(5) Before making any such byelaws the Corporation shall give to the Rochdale Area Butchers' Guardian Association not less than one month's notice of the Corporation's intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said association thereon before they submit them to the Minister for confirmation and such association shall be entitled to make representations to the Minister with regard thereto.

51.—(1) (a) In this section—

“the central area” means the area in the borough which is edged red on the map marked “central area map” of which map copies have been signed in triplicate by Joseph Gibbins the chairman of the committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited at the office of the Clerk of the Parliaments one in the Committee and Private Bill Office

Prohibition
of smoke in
certain areas.

PART V.
—cont.

of the House of Commons and one with the town clerk;

“ smoke ” includes soot ash grit and gritty particles but shall not include smoke emitted when coke anthracite or any other fuel of a type specified by the Corporation is used in a furnace stove or other appliance which is suitable for burning such fuel and is properly maintained and used.

(b) Copies of or extracts from the central area map deposited with the town clerk and purporting to be certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the central area map.

(2) Subject to the provisions of this section no smoke shall as from the commencement of this section be emitted from any premises in the central area.

(3) The occupier of any premises in the central area from which smoke is emitted contrary to the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

(4) (a) The foregoing provisions of this section may by order made by the Corporation and confirmed by the Minister be extended and applied to any area or areas within the borough which may be prescribed in such order.

(b) Before submitting an order under this subsection to the Minister the Corporation shall publish in the London Gazette and in one or more local newspapers circulating in the borough a notice—

(i) stating that such an order has been made and is about to be submitted to the Minister for confirmation;

(ii) stating the general effect of the order;

(iii) describing the area or areas to which the order applies; and

(iv) stating that within a period of twenty-eight days from the date of the first publication of the notice any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of such notice to the town clerk.

(c) If no objection is duly made or if all objections so made are withdrawn then the Minister may if he thinks fit confirm the order with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and shall consider any objection not withdrawn and the report of the person who held the inquiry and may then confirm the order either with or without modification.

(5) The Corporation shall compile and keep a register of the name and address of every person owning or occupying premises within the borough but beyond the central area who at any time after the passing of this Act shall by notice in writing to the town clerk request the Corporation to serve upon the person making such request a copy of any notice published in pursuance of paragraph (b) of subsection (4) of this section and the Corporation shall serve upon every such person at the address entered in the said register a copy of any such notice as relates to an order affecting premises owned or occupied by any such person:

Provided that the omission to serve a copy of any such last-mentioned notice on one or more of the persons (not being the whole number of such persons affected by any particular order) hereinbefore referred to shall not invalidate or prejudice any order made by the Corporation under paragraph (a) of the said subsection or the confirmation of such order by the Minister. Every notice served upon the Corporation by any person under this subsection shall state his name and address and shall specify the premises within the borough beyond the central area of which such person is owner or occupier.

(6) An order made under subsection (4) of this section may—

(a) in relation to any premises specified in the order—

(i) provide that the premises shall be excluded from the area;

(ii) provide that the application of the order to the premises shall be deferred for such period as may be specified;

(b) provide that the application of the order to premises used for any of the following processes shall be deferred for such period as may be specified or indefinitely—

(i) the working of a mine;

(ii) the smelting of ores and minerals;

(iii) the calcining puddling and rolling of iron and other metals;

(iv) the working of an electricity generating station of the authority; and

(v) the conversion of pig iron into wrought iron or the reheating annealing hardening forging converting and carburising of iron and other metals:

Provided that the application of the order to the premises referred to in paragraph (b) of this subsection shall not be

PART V.
—cont.

deferred on the ground that they are used for any of the said processes unless the Minister is satisfied that the inclusion of the premises within the operation of the order would obstruct or interfere with any such processes.

(7) An order made under this section shall come into operation on but not until such date as may be specified in the order which shall be not less than six months after the date of the first publication of the notice of the confirmation of the order.

(8) So soon as may be after an order made under this section has been confirmed by the Minister the Corporation shall publish in one or more local newspapers circulating in the borough a notice stating that the order has been confirmed and naming a place where a copy of the order as confirmed may be seen at all reasonable hours and shall serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the public inquiry in support of his objection.

(9) A copy of a newspaper containing a notice published in pursuance of this section shall be sufficient evidence of the publication of the notice.

(10) An order under this section may contain such provisions as the Minister may think expedient—

(a) for enabling the lessee or tenant of any premises within the area to which the order relates who has to incur expense in executing works or providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the order and the owner of such premises to enter into and fulfil agreements making such variations of the terms of the lease or tenancy of the premises as may be reasonable having regard to the expense to be incurred and to other relevant circumstances; and

(b) for enabling any such lessee or tenant who has been unable to make an agreement with the owner thereof under paragraph (a) of this subsection to apply to the county court for an order making such variations of the terms of the lease or tenancy of the premises as aforesaid and for enabling the court to make such an order.

(11) An order under this section may be varied or revoked by another order made by the Corporation and confirmed by the Minister.

(12) Nothing in this section or in an order made thereunder shall apply to smoke emitted from a railway locomotive.

(13) The Corporation may if they think fit contribute the whole or part of the expense necessarily incurred by any

person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with—

- (a) the provisions of subsection (2) of this section; or
- (b) the provisions of any order made by the Corporation and confirmed by the Minister under this section.

(14) The Corporation may in any resolution passed under the provisions of section 143 (Commencement of certain provisions of this Act) of this Act for the purpose of fixing the date for the commencement of this section provide in relation to any premises specified in that resolution that such premises shall be excluded from the central area or that the application of the provisions of this section to such premises shall be deferred for such period as may be specified in that resolution.

52.—(1) As from the commencement of this section no person shall instal in any building whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless such furnace is so far as practicable capable of being operated continuously without emitting smoke.

Prevention of
smoke from
industrial
furnaces.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and any person who after conviction of an offence of installing a furnace in contravention of those provisions uses that furnace shall unless it has been amended so as to comply with those provisions be liable to a penalty not exceeding two pounds for each day on which he so uses the furnace.

(3) If a person before installing in a building a furnace to which this section applies submits to the Corporation plans proposals and particulars of the proposed furnace and furnishes them with such other necessary information in regard thereto as they may require the Corporation shall within a period of six weeks from the date upon which such plans proposals particulars and information are received by them serve a notice upon such person stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke and if they are so satisfied or if they do not serve a notice upon such person before the expiration of the said period of six weeks no proceedings shall be taken against him under this section in respect of the installation of that furnace in accordance with the plans proposals particulars and information so submitted and furnished.

(4) Before serving a notice under this section stating that they are not satisfied that the furnace is so far as practicable

PART V.
—cont.

capable of being operated continuously without emitting smoke the Corporation shall consult with the Minister of Fuel and Power.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation or a court shall if either of the parties so desire have regard to cost and to local conditions and circumstances.

PART VI.

ENTERTAINMENTS &C.

Places used for
boxing or
wrestling
entertainments
to be licensed.
53 & 54 Vict.
c. 59.

53.—(1) As from the first day of September one thousand nine hundred and forty-eight the provisions of Part IV of the Public Health Acts Amendment Act 1890 shall in its application to the borough extend to any place kept or used for any boxing or wrestling entertainment as though such entertainment were of the like kind with public dancing and music.

(2) In this section “boxing or wrestling entertainment” means any public contest or display of boxing or wrestling except such as may be provided or given—

- (a) by travelling showmen at pleasure fairs;
- (b) in premises licensed under the Theatres Act 1843 if and so long as the conditions attached to the licence under the said Act are complied with as though such contest or display were a stage play;
- (c) by bona fide associations clubs hospitals or societies which are not carried on for profit;
- (d) by members of the Boy Scouts Association or of any organisation formed by the Boy Scouts Association in pursuance of their charter; or
- (e) by any school.

6 & 7 Vict.
c. 68.

(3) As from the first day of September one thousand nine hundred and forty-eight section 195 (Regulation of places for dancing music and other public entertainments) of the Act of 1872 and section 134 (Extension to boxing displays of section 195 of Act of 1872) of the Act of 1925 shall be repealed.

(4) The town clerk shall not less than fourteen days prior to the coming into operation of this section give public notice by advertisement in one or more local newspapers circulating in the borough of the effect of this section and of the date when it will come into operation.

(5) A copy of the newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

54.—(1) A police constable may at all reasonable times enter any premises licensed under Part IV of the Public Health Acts Amendment Act 1890 as extended by this Act in which he has reason to believe that an entertainment to which the provisions of the said Part apply is being or is about to be given with a view to seeing whether the provisions of the said Part applicable to such an entertainment and the terms conditions or restrictions on or subject to which any licence has been granted are complied with.

Powers of entry and inspection of certain licensed premises.

(2) A police constable may if he shall be authorised in that behalf by a warrant granted by a justice of the peace enter any premises in respect of which he has reason to suspect that an offence under the said Part is being committed.

55. The references in the Theatres Act 1843 to having or keeping any house or other place of public resort for the public performance of stage plays shall in their application to premises within the borough extend to and be deemed to include references to the using of premises whether on one occasion or on more than one occasion for the public performance of any stage play and the expressions “ have or keep ” and “ kept open ” where occurring in that Act shall be construed accordingly.

Occasional user of premises for stage plays.

56.—(1) As from the commencement of this section except in any case in which the Corporation otherwise require so much of section 7 of the Theatres Act 1843 as provides that the actual and responsible manager for the time being of a theatre in respect of which a licence is granted under that Act and two sureties shall become bound in penal sums for the purposes mentioned in the said section shall cease to have effect as respects licences granted by the Corporation under that Act.

Dispensation by Corporation with bonds by theatre managers.

(2) (a) If the licensee of a theatre licensed by the Corporation under the Theatres Act 1843 uses it or allows it to be used in contravention of the provisions of that Act or any rules made by the Corporation thereunder or of the terms conditions or restrictions upon or subject to which the licence was granted he shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding ten pounds.

(b) Upon a conviction under this subsection the licence granted in respect of the theatre may be revoked by the Corporation.

57.—(1) The Corporation may from time to time make byelaws—

Byelaws as to pleasure fairs.

(a) for regulating the hours during which pleasure fairs and any place kept or used for public roller-skating may be open to the public;

PART VI.
—cont.

- (b) for securing safe and adequate means of ingress to and egress from any pleasure fair or any place kept or used for public roller-skating;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair or any place kept or used for public roller-skating.

(2) In this section—

the expression “pleasure fair” means any place of entertainment for admission to which or for the use of the contrivances in which a charge is made and where the entertainment comprises any or all of the following whether or not in combination with any other forms of entertainment that is to say any circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery swings dodgems or other mechanical driving or riding devices automatic or other machines intended for entertainment or amusement and anything similar to any of the foregoing:

Provided that the expression “pleasure fair” does not include any place where—

- (a) any fair is held by statute royal charter royal licence letters patent or ancient custom; or
- (b) the entertainment is not run for profit and is not carried on for more than seven consecutive days.

(3) Before making any byelaws under this section the Corporation shall give to the Amusement Caterers' Association the Association of Amusement Park Proprietors of Great Britain and the Showmen's Guild of Great Britain not less than one month's notice of the intention of the Corporation to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said associations and guild thereon before they submit them to the Secretary of State for confirmation.

Registration of
entertainment
proprietors.

58.—(1) If any person after the commencement of this section uses any premises wholly or mainly for the business of providing any entertainments to which this section applies without being registered in respect of such premises he shall be liable to a penalty not exceeding five pounds and a daily penalty not exceeding forty shillings.

(2) An application for registration under this section shall be made in writing to the Corporation by or on behalf of the

person (hereinafter in this section referred to as "the proprietor") carrying on or proposing to carry on the business of providing entertainments to which this section applies and every such application shall state—

- (a) the address or situation of the premises to which the application relates;
- (b) the full name and address of the proprietor and if the proprietor is a company or firm or other body the registered or principal office of such company firm or body;
- (c) the periods (if any) in the twelve months preceding the commencement of this section during which the premises were being used wholly or mainly for the purpose of providing entertainments;
- (d) the extent to which it is proposed to use the premises for the purpose of providing entertainments and the general nature of the entertainments proposed to be provided at the premises;
- (e) the nature of the interest of the proprietor in the premises;

and where the proprietor is a prospective purchaser lessee or licensee of the premises shall be accompanied by a statement in writing signed by the person who proposes to sell lease or license the premises to the proprietor to the effect that the application is being made with his knowledge and consent.

(3) Subject as hereinafter provided the Corporation shall as soon as practicable and not later than two months after the receipt of an application under this section register the proprietor in respect of the premises to which the application relates:

Provided that (except where the premises were used wholly or mainly for the purpose of providing entertainments during a continuous period of not less than eight weeks in the twelve months immediately preceding the commencement of this section) the Corporation may refuse to register the proprietor in respect of the premises if—

- (a) the Corporation are of opinion that the premises cannot be made to conform to the requirements of any byelaws made under paragraph (b) or paragraph (c) of subsection (1) of section 57 (Byelaws as to pleasure fairs) of this Act; or
- (b) there are circumstances connected with the proprietor which in the opinion of the Corporation render it undesirable that he should be registered in respect of the premises.

PART VI.
—cont.

(4) If—

- (a) since the date of the registration circumstances connected with the proprietor have arisen which render it undesirable in the opinion of the Corporation that the proprietor should continue to be registered in respect of all or any of the premises in respect of which he is registered under this section; or
- (b) since the said date circumstances connected with the management by the proprietor of any premises in respect of which he is registered as aforesaid have arisen which render it undesirable in the opinion of the Corporation that he should continue to be registered in respect of the premises in relation to which such circumstances have arisen as aforesaid; or
- (c) the entertainments provided at any premises in respect of which the proprietor is registered under this section have offended against public decency; or
- (d) any premises in respect of which the proprietor is registered as aforesaid do not conform to the requirements of any byelaws made under paragraph (b) or paragraph (c) of subsection (1) of section 57 (Byelaws as to pleasure fairs) of this Act;

the Corporation may cancel the registration of the proprietor in respect of such premises:

Provided that the Corporation shall not on the grounds mentioned in the foregoing paragraph (d) of this subsection cancel the registration of the proprietor in respect of any premises—

- (i) (in the case of any premises which have been used for the purposes of providing entertainments during a continuous period of not less than eight weeks in the twelve months immediately preceding the commencement of this section) until the expiration of a period of three years from the twenty-seventh day of November one thousand nine hundred and forty-seven; and
- (ii) (in any case) unless the proprietor has had a reasonable opportunity to make the premises conform to the requirements of any such byelaw as is referred to in that paragraph.

(5) The Corporation shall not refuse to grant an application for registration under this section and shall not cancel any such registration until they have given the proprietor an opportunity of appearing before and of being heard by a committee of the Corporation and if so required by him shall within seven days of their decision give to him a statement of the grounds on which it was based.

(6) The entertainments to which this section applies are entertainments for admission to which or for the use of which a charge is made and which comprise any or all of the following whether or not in combination with any other forms of entertainment that is to say any circus exhibition of human beings or performing animals merry-go-round roundabout switch-back railway roller-skating rink cocoanut shy hoop-la shooting gallery swings dodgems or other mechanical driving or riding devices automatic or other machines intended for entertainment or amusement and anything similar to any of the foregoing but this section shall not apply to any entertainments provided at a fair held by statute royal charter royal licence letters patent or ancient custom or at any travelling circus or travelling fair of a temporary character or to any entertainment which is not run for profit and is not carried on for more than seven consecutive days.

PART VI.
—cont.

(7) In this section the expression “ premises ” includes any part of a building which is structurally divided from the remainder of the building and land on which buildings have not been erected.

PART VII.

MARKETS AND WEIGHING MACHINES.

59.—(1) The Corporation by means of an order made by the Corporation and submitted to the Minister and confirmed by him may be authorised to purchase land compulsorily for the purposes of the markets undertaking. Compulsory acquisition of land for markets.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act. 9 & 10 Geo. 6. c. 49.

60.—(1) On and from the first day of September one thousand nine hundred and forty-eight the Corporation may demand and take in respect of any cattle market under the management of the Corporation tolls not exceeding the tolls set out in the schedule to this Act. Tolls in Corporation markets.

(2) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls mentioned in the schedule to this Act and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said schedule.

61.—(1) The Corporation may erect and maintain on any open space or public place on or adjoining any highway in the borough such weighbridges or weighing machines and offices. Power to erect weighbridges.

PART VII.
—cont.

in connection therewith as they may consider necessary or desirable for the use of the public.

(2) The Corporation may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Corporation under the provisions of this section.

(4) The powers of this section shall not be exercised in such a manner as to cause obstruction to or interference with the access to or exit from any station or depot of the commission except with their consent.

PART VIII.

ESTABLISHMENTS FOR MASSAGE OR SPECIAL TREATMENT.

Definition of
establishment
for massage
or special
treatment.

62. In this Part of this Act the expression " establishment for massage or special treatment " means any premises in the borough used or represented as being or intended to be used for the reception or treatment of persons requiring—

- (a) massage manicure or chiropody; or
- (b) electric treatment or radiant heat light electric vapour or other baths for therapeutic treatment; or
- (c) other similar treatment.

Establishments
for massage
or special
treatment to
be licensed.

63. As from the commencement of this Part of this Act no person shall carry on an establishment for massage or special treatment without a licence from the Corporation authorising him so to do.

Applications
for licences.

64.—(1) A person requiring a licence or the renewal of a licence under this Part of this Act shall make application in writing to the Corporation and shall in the application state—

- (a) his full name;
- (b) his age and nationality;
- (c) his technical qualifications;
- (d) his private address or if the application be made by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the directors or other persons directly or indirectly responsible for the management of such company society association or body;

- (e) the name under which and the address at which the establishment is carried on or proposed to be carried on;
- (f) the nature of the establishment and of the business carried on or proposed to be carried on thereat;
- (g) whether and if so to what extent he is or has been interested in any other establishment for massage or special treatment; and
- (h) such further information (if any) as the Corporation may reasonably require with respect to him or the establishment carried on or proposed to be carried on by him.

(2) The person making an application under this section shall when making the same pay to the Corporation such fee as the Corporation may fix not exceeding—

	£	s.	d.
(a) in respect of the grant of a licence	2	2	0
(b) in respect of the renewal of a licence ...	1	1	0

and the fees paid on any application for the grant or renewal of a licence may be retained by the Corporation whether such licence is or is not granted or renewed.

(3) An applicant for a licence or renewal of a licence under this section shall give not less than twenty-one days' notice in writing of his intention to make such application to the Corporation.

(4) Subject to the foregoing provisions of this section the Corporation may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this Part of this Act shall be made.

65.—(1) The Corporation shall as soon as reasonably practicable after the receipt of an application under this Part of this Act grant or renew a licence to the applicant to carry on an establishment for massage or special treatment of the description and in the name and at the address specified in the application and may attach such conditions thereto as they may consider reasonably necessary for securing the due notification to them of any change in the name or private address of the licensee or in the treatment afforded or the nature of the business carried on at the establishment and generally for securing the proper conduct of the establishment:

Provided that the Corporation may refuse to grant or renew a licence or may revoke a licence granted—

- (a) to any person under the age of twenty-one years; or
- (b) to any person who may be unsuitable to hold such licence; or

PART VIII.

—cont.

- (c) in respect of any premises which are unsuitable for the purposes of an establishment for massage or special treatment or in which the accommodation or provision for such treatment is not reasonably adequate or suitable; or
- (d) in respect of any establishment which has been or is being improperly conducted; or
- (e) in respect of any establishment in which massage or special treatment is or may be administered by any person who does not possess such technical qualifications as may be reasonably necessary; or
- (f) in respect of any establishment which is being carried on in contravention of the provisions of this Part of this Act or any byelaw made thereunder.

(2) If the Corporation refuse to grant or renew a licence or revoke a licence under this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of such requirement particulars in writing of the ground or grounds for such refusal or revocation.

(3) Where an application is made for the renewal of a licence and objections have been taken to such renewal or when it is proposed to revoke a licence notice in writing to that effect shall at least seven days before the question of renewal or revocation is considered be given to the applicant or holder of the licence and if within three days after the receipt of this notice the applicant or holder requires to be heard the application shall not be refused or the licence revoked unless the Corporation has afforded him an opportunity of being heard against the refusal or revocation.

Any notice served under this subsection shall state the objections to renewal or the grounds on which revocation is proposed and shall notify the aforesaid opportunity of being heard and also the effect of subsection (2) of this section and the right of appeal conferred by section 145 (As to appeals) of this Act and the time within which such appeal may be brought.

(4) Every licence granted or renewed as aforesaid shall (unless revoked) be valid until the date of the next annual meeting fixed for the purpose of considering applications under this Part of this Act and no longer.

Byelaws as to
establishments
for massage
or special
treatment.

66.—(1) The Corporation may make byelaws—

- (a) prescribing the keeping by every person holding a licence under this Part of this Act of books cards or forms showing the business conducted by him so far as it relates to his establishment for massage or special treatment;

- (b) prescribing the entries to be made in connection with such business in such books or cards or forms;
- (c) prescribing the technical qualifications to be possessed by any person who administers massage or special treatment at any establishment licensed under this Part of this Act;
- (d) for preventing fraud and immorality in the conduct of establishments so licensed; and
- (e) generally for regulating any premises used for the purposes of or in connection with any such establishment.

(2) Every person holding a licence under this Part of this Act shall keep exhibited in a suitable place (to be approved by the Corporation) in the premises to which the licence relates a copy of the byelaws made under this section.

67. Any officer of or other person duly authorised by the Corporation in that behalf may—

Powers of
entry and
inspection.

- (a) enter the premises specified in any licence or application under this Part of this Act or any premises which are used or such officer or person has reasonable cause to believe are used for the purposes of or in connection with an establishment for massage or special treatment; and
- (b) inspect such premises and the books cards or forms kept in connection with the establishment carried on at those premises.

68.—(1) Every person who carries on an establishment for massage or special treatment in the borough without a licence under this Part of this Act or otherwise than in accordance with the terms and conditions of such licence or obtains a licence or the renewal of a licence by wilful misrepresentation or by wilfully omitting to give such particulars as are required by this Part of this Act to be given or who otherwise acts in contravention of the provisions of this Part of this Act shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a fine impose any period of imprisonment not exceeding three months.

Penalties for
offences in
respect of
establishments
for massage
or special
treatment.

(2) Every person who—

- (a) refuses to permit any officer or person duly authorised by the Corporation to enter or inspect any premises which such officer or person is authorised under the provisions of this Part of this Act to enter and inspect or obstructs any such officer or person in the

PART VIII.
—cont.

execution of his duty under such provisions or under the provisions of any byelaw made thereunder; or

- (b) contravenes the provisions of any byelaw made under this Part of this Act; or
- (c) issues publishes or displays or causes to be issued published or displayed any advertisement relating to an establishment for massage or special treatment which is not licensed in accordance with the provisions of this Part of this Act after the expiration of a period of seven days from the receipt of notice in writing from the Corporation that the licence relating to such establishment has expired or has been refused or revoked under the provisions of this Part of this Act;

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) In respect of any conviction for an offence under this Part of this Act the court may (in lieu of or in addition to imposing a penalty) make an order revoking the licence (if any).

Saving for
establishments
carried on by
medical
practitioners.

69. Subject as hereinafter provided the provisions of this Part of this Act shall not apply to an establishment for massage or special treatment carried on by a registered medical practitioner with respect to which there has been lodged with the Corporation a certificate in a form to be approved by the Corporation and signed by two registered medical practitioners practising or residing in the borough not being in partnership with such first-mentioned medical practitioner or with each other and not having any financial or other interest in such establishment to the effect that the medical practitioner carrying on or proposing to carry on such establishment is a suitable person to carry on the same at the premises used or to be used therefor:

Provided that any such certificate shall not be valid—

- (a) with respect to any person or premises other than the person or premises specified therein; or
- (b) for a period extending beyond the expiration of one month after the date of the annual meeting fixed for the purpose of considering applications under this Part of this Act.

Saving for
members of
Chartered
Society of
Physio-
therapy.

70.—(1) Subject as hereinafter provided the provisions of this Part of this Act prohibiting a person from carrying on an establishment for massage or special treatment without a licence from the Corporation authorising him so to do shall not apply to a registered member of the Chartered Society of Physiotherapy carrying on or proposing to carry on any

such establishment with respect to which there has been lodged with the Corporation a certificate in a form to be approved by the Corporation and signed by two registered medical practitioners practising or residing in the borough not being in partnership with each other and not having any financial or other interest in such establishment to the effect that the person carrying on or proposing to carry on such establishment is a suitable person to carry on the same at the premises used or to be used therefor:

Provided that any such certificate shall not be valid—

- (a) with respect to any person or premises other than the person or premises specified therein; or
- (b) for a period extending beyond the expiration of one month after the date of the annual meeting fixed for the purpose of considering applications under this Part of this Act.

(2) Any registered member of the said society carrying on an establishment for massage or special treatment with respect to which a valid certificate is deposited with the Corporation under subsection (1) of this section is in this section referred to as a “registered member.”

(3) During the validity of any such certificate the provisions of this Part of this Act (other than section 63 (Establishments for massage or special treatment to be licensed) section 64 (Applications for licences) and section 65 (Grant of licences)) shall apply to a registered member and to the establishment carried on by him—

- (a) as if he held a licence under this Part of this Act; and
- (b) as if the premises with respect to which the certificate has been given were the premises specified in the licence:

Provided that no person other than the medical officer or a registered medical practitioner shall be entitled for the purposes of this Part of this Act to inspect the premises at which the establishment is carried on or the books cards or forms kept in connection with such establishment.

(4) The provisions of this section shall apply to a registered member and to the establishment carried on by him so long only as he complies with the provisions of the charter granted to the said society and with the byelaws made thereunder.

PART VIII.

—cont.

Saving for
certain
premises.

71. Notwithstanding anything in this Part of this Act the provisions thereof shall not except as provided by the next succeeding section apply to—

- (1) any hospital provided by the Minister; or
- (2) any nursing home which is for the time being registered under the Act of 1936 or exempted from registration under that Act by a certificate granted by either the Corporation or by the Minister and at which the persons administering massage or special treatment have such technical qualifications as may be reasonably necessary; or
- (3) any premises used for the reception or treatment of persons for any purpose to which the provisions of this Part of this Act apply but not so used for the purpose of gain or reward; or
- (4) any premises being an establishment for massage or special treatment merely by reason of face or scalp massage or manicure treatment being administered in those premises.

Extension of
Part VIII to
other premises
and businesses.

72. In any case in which the Corporation have reason to believe that any premises (including premises referred to in the foregoing section of this Act) situate in the borough and to which premises the provisions or some of the provisions of this Part of this Act do not apply are advertised as being used for some legitimate business but are in fact being used for immoral purposes the Corporation may subject to the approval of the Secretary of State by resolution determine that all or any of the provisions of this Part of this Act and of any byelaws made thereunder shall extend and apply to such premises and the business carried on therein as if such premises and business were included in the expression "establishment for massage or special treatment" within the meaning of this Part of this Act and as from the passing of any such resolution as aforesaid or as from such date (if any) as may be specified therein all or any of the provisions of this Part of this Act and any such byelaws as aforesaid shall extend and apply accordingly.

PART IX.

HEATING UNDERTAKING.

Supply of heat.

73. The Corporation may supply heat by means of hot water or steam to any premises in the borough upon and subject to such terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises:

Provided that in the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person:

Provided also that no agreement shall be made between the occupier of any premises and the Corporation for a supply of heat to such premises unless the consent (which shall not be unreasonably withheld) of the owner has been obtained to the carrying out of the works for installing the necessary plant for giving the supply.

74.—(1) Subject to the provisions of this Part of this Act the Corporation may on in or under any lands in the borough belonging or leased to them erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing transmitting and distributing heat by means of hot water or steam and for producing any material product matter or thing arising or used in the process of such provision of heat by means of hot water or steam (including the generation of electricity) together with such buildings boilers engines machinery sidings matters and things of whatever description as may be required by the Corporation to enable them to provide store transmit and distribute heat by means of hot water or steam and the Corporation may accordingly on those lands provide store transmit and distribute heat by means of hot water or steam and may produce such materials products matters and things:

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted;
 - (b) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.
- (2) (a) The Corporation may—
- (i) obtain for the purposes of this Part of this Act a supply of hot water or steam from any person and transmit such hot water or steam to and distribute heat by means thereof within the borough; and

PART IX.
—cont.

- (ii) generate electricity at any works established by them for the purposes of this Part of this Act and use all or any of such electricity only for or in connection with the supply of heat by means of hot water or steam at any works at which such electricity is generated or (with the consent of the authority and the board) elsewhere or sell all or any of such electricity to the authority or (with the approval of the authority) the Board.

(b) The Corporation may enter into and carry into effect agreements with any person for and with respect to any of the matters mentioned in paragraph (a) of this subsection and any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

As to
construction
of station for
providing heat.

75.—(1) If the Corporation shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Part of this Act the Corporation shall forthwith give to the Minister of Fuel and Power and to the authority notice of such resolution together with such information with regard to such station as the authority may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat and the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the Corporation for the purposes of their heating undertaking and of the times and form at and in which such quantity or quantities will be required. Any dispute between the Corporation and the authority as to whether any information is reasonably required by the authority under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the authority may serve upon the Corporation a counter-notice offering a supply of heat to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the Corporation and the authority.

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the Corporation and the authority the terms and conditions upon which a supply of heat is to be given to the Corporation by the authority for the purposes of the heating undertaking are not agreed between them the Corporation shall submit to the

Minister of Health for determination the question whether a supply of heat shall be afforded to the Corporation by the authority and in that event the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister of Health determines that a supply of heat shall be afforded to the Corporation by the authority the authority shall afford such a supply in accordance with terms and conditions approved by the Minister:

Provided that if the Minister makes a substantial alteration in the terms or conditions on which the authority offered a supply of heat to the Corporation then if within twenty-eight days after the receipt of the determination of the Minister the authority give notice in writing to the Minister and the Corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the Corporation and the Corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within twenty-eight days of such last-mentioned notice the Corporation serve on the authority a notice requiring a supply in which case the authority shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

(5) (a) If the said station is constructed by the Corporation they shall supply and the authority shall take all the electricity generated thereat which is not—

(i) required for or in connection with the supply of heat;
or

(ii) supplied with the approval of the authority to the board;

upon such terms and conditions as may be agreed between the Corporation and the authority or in default of agreement determined by arbitration as hereinafter provided on the basis of a supply by a willing seller to a willing buyer.

(b) Any matter to be determined by arbitration under this subsection shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

76.—(1) The Corporation by means of an order made by the Corporation and submitted to the Minister and confirmed by him may be authorised to purchase land compulsorily for the purposes of the heating undertaking.

Compulsory
acquisition
of land for
heating
undertaking.

PART IX.
—cont.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) In this section the expression “land” includes easements and other rights in respect of land and the Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the land. In relation to the compulsory acquisition of any such easement or other right the said Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land in respect whereof the easement or other right is acquired and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or other right.

(4) As regards any lands in respect of which the Corporation have acquired easements or rights only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements or rights have the same rights of using and cultivating the said lands at all times as if this Act had not been passed.

Further powers as to mains and pipes.

77. For the purposes of this Part of this Act the Corporation shall have and may exercise the like powers and duties and be subject to the like restrictions as a local authority who supply water under the Act of 1936 have and are subject to under sections 119 and 333 of that Act with respect to the laying and maintenance of water mains and for that purpose the mains and pipes for supplying heat by means of hot water or steam shall be deemed to be water mains.

Consultation with authority and board as to certain works.

78.—(1) Before the Corporation—

- (a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Part of this Act; or
- (b) lay down any main under the provisions of this Part of this Act other than a main extending for a distance of not more than two hundred yards from any main laid down in accordance with proposals previously made under this section;

they shall give to the Minister and to the authority and the board notice of their proposals and such information with regard thereto as the authority or the board may within six weeks of the receipt of such notice reasonably require and shall consult with the authority and the board on such proposals. Any dispute between the Corporation and the authority or the board as to whether any information is reasonably required by the authority or the board under this subsection shall be referred to and determined by the Minister.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the Corporation as to the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes and apparatus of the authority and the board from damage or injury arising directly or indirectly from any mains or pipes to be laid down by the Corporation under the powers of this Part of this Act;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom;
- (c) the maximum and minimum temperatures and pressures at which heat may be stored transmitted and distributed by the Corporation;
- (d) the methods for measuring the volume temperature and pressure of the heat so stored transmitted or distributed; and
- (e) the independent testing of such measurements.

(3) The authority and the board or either of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister with respect to such proposals.

(4) If no such representations are made the Corporation shall not proceed except in accordance with the proposals sent to the authority and the board or any alteration thereof which may be agreed.

(5) If any such representations are made the Corporation shall not proceed with their proposals except with the approval of the Minister and in accordance with any modification of such proposals which the Minister may require.

(6) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Part of this Act.

(7) In and for the purposes of this section "the Minister" means the Minister of Fuel and Power.

PART IX.

—cont.

Construction
&c. of electric
wires &c.
8 & 9 Geo. 6.
c. 42.

79.—(1) The following provisions of the Third Schedule to the Water Act 1945—

- (a) in Part V (Power to lay mains &c.) of the said schedule section 19 (except in subsection (1) thereof the words “and also subject to the provisions of the next succeeding section outside those limits”) and section 21; and
- (b) Part VI (Breaking open streets &c.) of the said schedule (except in section 22 thereof the words “and outside those limits for the purpose of laying any mains which they are authorised to lay and of inspecting repairing renewing or removing mains” and in section 25 subsection (4) thereof);

shall apply with the necessary modifications to the construction laying down erection and maintenance in under or over any street within the borough of any electric lines wires conductors or apparatus which the Corporation may and which they are hereby authorised to construct lay down or erect for the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 74 (Works &c. for provision of heat) of this Act.

(2) All provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to any electrical lines wires conductors or apparatus to be constructed laid down or erected under the authority of this section and references in those provisions to undertakers shall be construed as referring to the Corporation.

(3) The powers of this section shall not be exercised except with the consent of the authority and the board.

Power to
supply fittings.

80.—(1) In any premises in which the Corporation supply or propose to supply heat by means of hot water or steam they may provide (but not manufacture) and may supply by way either of sale or hire any such radiators pipes meters apparatus and fittings (in this Part of this Act referred to as “fittings”) as may be required for or in connection with the utilisation of the heat so supplied and may instal repair or alter any such fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair or alteration.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied and where the amount does not exceed twenty pounds such charges may be recovered summarily as a civil debt.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation:

1 & 2 Geo. 6.
c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the published accounts of the Corporation for that year.

(6) If any person wilfully or negligently injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

PART IX.

—cont.

Collection
and recovery
of heating
charges.

81.—(1) The Corporation may from time to time prescribe a scale of charges (in this section referred to as "heating charges") for heat supplied to premises under the powers of this Act and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable pursuant to subsection (1) of this section shall be shown separately by the Corporation in rent books or on demand notes and receipts issued by them.

(3) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any instalment of a heating charge payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due:

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the heating charge or as to the liability to pay the charge they shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction:

Power to enter
premises.

82.—(1) Any officer of the Corporation duly authorised in writing and (if so required) producing his authority may at all reasonable hours enter any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act or any premises upon which any fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid—

- (a) for the purpose of examining and inspecting any fittings whether belonging to the Corporation or not and (where such fittings include any meter for measuring heat supplied to any premises) of recording the reading of such meter;
- (b) for the purpose of ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any conditions subject to which a supply of heat was agreed to be furnished to any premises;

(c) for the purpose of ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;

(d) for the purpose of taking any action or executing any work authorised by this Part of this Act or by any agreement for the supply of heat to be taken or executed by the Corporation:

Provided that except in cases of emergency arising from defects in any fittings admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier:

Provided also that nothing in this section shall authorise any officer of the Corporation without the previous consent in writing of any electricity board established under and as defined in the Electricity Act 1947 to enter any premises occupied or used by such board in connection with the generation or supply of electricity other than offices or showrooms. 10 & 11 Geo. 6.
c. 54.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

(a) that admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and

(b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force:

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

PART IX.
—cont.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Interference
with apparatus
&c.

83.—(1) If any person either—

(a) wilfully and without the consent of the Corporation;

or

(b) negligently;

turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby causes the supply of heat or hot water or steam to be interfered with he shall be liable to a penalty not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damage sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(2) If any person wrongfully takes uses or diverts any heat or hot water or steam from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds.

Byelaws for
preventing
waste misuse
or
contamination
of hot water.

84. If at any time the Corporation in the exercise of the powers of section 17 of the Water Act 1945 make byelaws for preventing waste undue consumption misuse or contamination of water supplied by them such byelaws shall apply with respect to pipes and other works used in connection with the supply and use of heat by means of hot water or steam as though that hot water or steam were water supplied by the Corporation.

Amendment of
section 77 of
Act of 1937.
1 Edw. 8. &
1 Geo. 6.
c. lxvii.

85. Section 77 (Demand complaint information or summons may contain several sums) of the Rochdale Corporation Act 1937 shall be read and have effect as if the words "heat or gas" were substituted for the words "gas or electricity."

Reports and
returns with
respect to
heating
undertaking
and supply of
heat.

86.—(1) The Corporation shall give to the authority and the board such reports and returns and such information with respect to the heating undertaking as the authority or the board may reasonably require and the authority shall give to the Corporation such reports and returns and such information with respect to any supply by them of heat by means of hot water or steam as the Corporation may reasonably require.

(2) Any dispute between the Corporation on the one hand and the authority or the board on the other hand as to whether any reports returns or information are reasonably required by the authority or the board or the Corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

87. For the protection of the authority and the board (each of whom is in this section referred to as "the electricity board") the following provisions shall unless otherwise agreed in writing between the Corporation and the electricity board apply and have effect:—

(1) In this section—

the expression "apparatus" means any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity board; 45 & 46 Vict. c. 56.

the expression "authorised work" means any main service pipe conduit duct or other work laid down placed or executed by the Corporation for the purposes of the heating undertaking in the exercise of the powers of this Part of this Act or any Act incorporated therewith:

(2) Where the Corporation require to dig or sink any trench for laying down placing or constructing any authorised work near to which any apparatus has been lawfully placed the Corporation shall give to the electricity board to whom such apparatus belongs notice in writing of such requirement together with plans sections and particulars of the authorised work to be laid in such trench and if it should appear to the electricity board that the laying down placing or construction of such authorised work would injure interfere with or endanger any apparatus or interfere with the access thereto or impede the supply of electricity by means thereof the electricity board may within fourteen days from the receipt of such notice give to the Corporation notice in writing requiring them to alter the position or depth of such apparatus in such manner as may be reasonably necessary for avoiding any such injury interference danger or impediment and any difference as to the necessity for such alteration or the manner of carrying out the alteration shall be determined by arbitration as hereinafter provided All such alterations shall (save as in this section provided) be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the electricity board as the circumstances will admit and to the reasonable

PART IX.
—cont.

satisfaction of the engineer of the electricity board and under his superintendence unless after receiving not less than three days' notice for that purpose (which notice the Corporation are hereby required to give except in cases of emergency) he refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the laying down placing or construction of such work:

- (3) The Corporation in laying down placing or constructing any authorised work shall not interfere with the access to any apparatus to any greater extent than is necessary for the purpose of or in connection with the carrying out of that work and shall not remove or displace any apparatus or do anything to endanger any apparatus or impede the passage of electricity into or through any apparatus without the consent (which shall not be unreasonably refused) of the electricity board or in any other manner than the electricity board shall reasonably approve nor in the case of apparatus proposed to be removed or displaced until good and sufficient apparatus and other works reasonably necessary or proper for continuing the supply of electricity as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and be ready for use to the reasonable satisfaction of the engineer of the electricity board:
- (4) If the electricity board shall desire to alter the position or depth of any apparatus under subsection (2) of this section or to provide any substituted apparatus referred to in subsection (3) thereof and shall within the period of fourteen days referred to in subsection (2) of this section give not less than seven days' notice in writing thereof to the Corporation the electricity board may themselves carry out any of the said works and shall commence execute and complete the same with all reasonable dispatch and to the reasonable satisfaction of the Corporation and all reasonable expenses properly incurred by them under this subsection shall be repaid to them by the Corporation:
- (5) The reasonable expense of all repairs or renewals of—
 - (i) any apparatus existing at the time of the laying down placing or construction of the authorised work; or

(ii) any apparatus substituted for such existing apparatus or any part thereof and being of reasonably similar size and type;

which may at any time hereafter be rendered reasonably necessary by reason of—

(a) the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them in the exercise of the powers of this Part of this Act; or

(b) any subsidence resulting from the laying down placing construction or removal of any authorised work whether during the laying down placing construction or removal of the authorised work or at any time within two years thereafter;

shall be borne and paid by the Corporation:

(6) The Corporation in laying down placing constructing or removing any authorised work shall make good all damage done by them to any apparatus and shall make compensation to the electricity board for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service or supply lines of any person supplied by the electricity board with electricity:

(7) If any difference shall arise between the Corporation and the electricity board or their respective engineers with respect to any matter under this section the matter in difference shall be referred to an arbitrator:

(8) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the electricity board may be under in respect of their apparatus and any duties or obligations which the Corporation may be under in respect of the authorised work and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus is used.

88. Nothing in this Part of this Act shall exonerate the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Corporation
not to be
exempted from
proceedings
for nuisance.

PART IX.
—*cont.*
Heating
undertaking
to be a
statutory
undertaking
under Town
and Country
Planning Acts
1944 and 1947.
7 & 8 Geo. 6.
c. 47.

Amendment of
section 27 of
Weights and
Measures Act
1889 in its
application to
the borough.
52 & 53 Vict.
c. 21.

As to sale of
coal or coke
otherwise
than in sacks
from a vehicle.

89. The provisions of the Town and Country Planning Acts 1944 and 1947 shall where applicable apply to the heating undertaking as if that undertaking were a statutory undertaking and as if the Minister were the "appropriate Minister" within the meaning of section 119 of the Town and Country Planning Act 1947.

PART X.

SALE OF COKE &C.

90. As from the commencement of this section proviso (a) to section 27 of the Weights and Measures Act 1889 as amended by section 46 (Application to sale of coke of Weights and Measures Act 1889) and section 48 (Application of Part VIII of Act) of the Rochdale Corporation Act 1937 in its application to the borough shall be read and have effect as if in that proviso the words "one mile" were substituted for the words "half a mile."

91.—(1) As from the commencement of this section any person selling or intending to sell or exposing for sale coal or coke or any solid fuel derived from coal or of which coal or coke is a constituent from or on a vehicle otherwise than in sacks bags or other receptacles and not carrying on such vehicle a weighing instrument of a type approved by the Corporation stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal or coke or solid fuel on such vehicle and shall be furnished with a ticket or note stating the gross tare and nett weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

PART XI.

FINANCE AND RATING.

Power to
borrow.

92.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as

the Corporation may determine not exceeding those respectively mentioned in the third column of the said table:—

PART XI
—cont.

1	2	3
Purpose.	Amount.	Period for repayment.
(a) For the payment of the cost of redeeming the annuities under the provisions of section 100 (Redemption of water annuities) of this Act.	The sum requisite.	Forty years from the date when the Corporation determine to pay off and redeem the annuities.
(b) For the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the provisions of Part IX of the Act of 1933 to the borrowing of money for the purposes of section 113 (Carriage of parcels) of this Act the sanctioning authority shall be the Minister of Transport.

93. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for powers of Treasury.

9 & 10 Geo. 6.
c. 58.

94. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

As to exercise of borrowing powers.
8 & 9 Geo. 6.
c. 18.

95. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application of Act of 1933 to existing sinking funds.

96.—(1) The Corporation may (if they think fit) establish a fund to be called "the capital fund" to which they may pay any sums derived from the sale of any property of the

Capital fund.

PART XI.
—cont.

Corporation the balance of the general rate fund in hand on the thirty-first day of March in any year and such other sums from the general rate fund as the Corporation may by resolution direct (not being moneys directed by law to be applied to any other purpose):

Provided that—

(a) any sum directed by the Corporation to be paid to the capital fund from the general rate fund (exclusive of the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not exceed in any year the equivalent of a rate of fourpence in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925;

(b) when the capital fund shall amount to the sum of seventy-five thousand pounds the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of seventy-five thousand pounds the Corporation may recommence and continue payments until the said fund be restored to the sum of seventy-five thousand pounds.

(2) The Corporation may apply the money in the capital fund for the purpose of defraying any expenditure to which capital is properly applicable to an amount not exceeding in any one transaction the sum of seven thousand five hundred pounds or such greater sum as may be allowed by the Minister in any case and in the exercise of any statutory borrowing power possessed by them other than in connection with any of the undertakings of the Corporation as from time to time existing from which revenue is derived or in providing money for payments into sinking funds in respect of loans raised under any such borrowing power (but not in making the annual payment required to be made thereto).

(3) (a) Pending the application of the capital fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital fund.

(c) Any sums derived from the sale of any corporate land of the Corporation as defined in section 305 of the Act of 1933 shall not be applied otherwise than in the purchase or acquisition of other corporate land.

97.—(1) The Corporation may (if they think fit) establish a fund to be called “ the renewal and repairs fund ” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and in maintaining and repairing paths and apparatus in public walks and pleasure grounds and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any undertaking of the Corporation in respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account. Renewal and repairs fund.

(2) The Corporation may from time to time pay out of the general rate fund such sums as they think fit into a fund to be established under this section.

(3) When the renewal and repairs fund shall amount to the sum of fifty thousand pounds the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of fifty thousand pounds the Corporation may recommence and continue payments until the said fund be restored to the sum of fifty thousand pounds.

(4) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (3) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

98.—(1) The Corporation may (if they think fit) establish a fund to be called “ the art fund ” to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or

PART XI.
—*cont.*

historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the art gallery and museum or other building of the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the amount (calculated in accordance with the rules made under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one-fifth of a penny in the pound levied in that year in the borough:

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised in the foregoing subsection the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

General
insurance
fund.

99.—(1) The Corporation may (if they think fit) establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as “ the specified risks ”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks; or

(b) if the Corporation insure in some insurance office against the whole or any part of all or any of the

specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

PART XI.
—cont.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses

PART XI.
—cont.

damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by the Corporation.

Redemption
of water
annuities.

100. The Corporation may at any time by resolution passed at an ordinary or special meeting of the Corporation determine to pay off and redeem the annuities and on such resolution being passed such annuities shall be redeemable by the Corporation by the method and on the terms following that is to say upon transfer to the registered holders of such annuities of such an amount of either two and a half per centum Consolidated Stock 1923 (or after) or two and a half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross interest thereon will equal the amount of the annuity or annuities held by them or upon payment into court in the names of the registered holders of such annuities of a sum equal to the price of such an amount of stock as aforesaid in accordance with the provisions of this Act.

Provisions for
carrying out
redemption of
water
annuities.

101. In the event of the Corporation resolving in terms of the immediately preceding section to redeem the annuities the following provisions shall have effect:—

- (1) The Corporation shall as soon as may be after passing such resolution publish notice thereof in the London Gazette and once in each of two consecutive weeks in one or more newspapers circulating in the borough and they shall also cause a notice (in this section referred to as "the notice of redemption") to be given to every holder of any such annuity or

annuities by sending the same by post in a registered letter to the address of such holder as entered in the register or to his last-known address:

PART XI.
—cont.

- (2) The notice of redemption shall set forth the terms of such resolution and shall state the method and the terms of the redemption prescribed in the immediately preceding section and this section:
- (3) On or before a day (in this and the next succeeding section referred to as "the transfer day") to be named in the notice of redemption every holder of any such annuity or annuities shall transmit or deliver to the Corporation or to a nominee of the Corporation to be named in the notice of redemption the annuity certificate or certificates registered in his name and the Corporation shall thereupon transmit or deliver to him an acknowledgment in writing of the receipt of such annuity certificate or certificates and an undertaking to register in his name or in the name of his nominee stock of the amount and in the manner hereinafter in this section mentioned:
- (4) The transfer day shall be a date not less than three months from the date of the notice of redemption:
- (5) In the event of the loss of any certificate for any such annuity the production of proof to the reasonable satisfaction of the Corporation of such loss together with an indemnity against any and every claim in respect of such certificate shall be held to be equivalent to the delivery to the Corporation or their nominee of such certificate:
- (6) Where in terms of this section a holder of any such annuity or annuities shall have on or before the transfer day transmitted or delivered to the Corporation or to the nominee of the Corporation the annuity certificate or certificates registered in his name or shall have produced proof of the loss of the same as aforesaid the Corporation shall as soon as may be after the transfer day transfer or cause to be transferred to the name of such holder or to the name of any nominee whom he may appoint by writing transmitted or delivered to the Corporation before the transfer day such an amount of either two and half per centum Consolidated Stock 1923 (or after) or two and a half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross interest thereon will equal the amount of the annuity or annuities held by him and

PART XI.
—cont.

the Corporation shall also pay to such holder the amount of annuity accrued in respect of the certificate or certificates delivered up to the Corporation less the amount of any accrued interest on the stock transferred:

- (7) In the event of the registered holder of any certificate or certificates for any such annuity or annuities failing to deliver such certificate or certificates to the Corporation or their nominee or to produce proof of its or their loss as aforesaid on or before the transfer day the Corporation shall as soon as may be after the transfer day pay into court as if it belonged to a trust of which they were trustees in the name of such holder a sum sufficient to purchase such an amount of either two and a half per centum Consolidated Stock 1923 (or after) or two and a half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross interest thereon will equal the amount of the annuity or annuities held by him and that at the closing official selling price of such stock mentioned in the official list of the London Stock Exchange for the day for which that list is issued last preceding the transfer day and the Corporation shall also cause a notice to be sent by post in a registered letter to such holder stating that such sum has been placed to his credit as aforesaid:
- (8) The delivery to the Corporation or their nominee of the annuity certificate or certificates or the production of proof of the loss of the same in terms of this section or in the case of any annuity certificate or certificates which have not been delivered or proof of the loss of which has not been produced as aforesaid a certificate given in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 stating that the sum referred to in the immediately preceding subsection has been paid into court shall be sufficient discharge to the Corporation and thereupon the annuity or annuities shall whether the annuity certificate or certificates have or have not been produced and delivered up as aforesaid be deemed to be and shall be redeemed and an entry of the redemption of such annuity or annuities shall be made in the register of annuities and such annuity or annuities shall be wholly extinguished and thereupon the liability of the Corporation to pay or provide for the payment of such

annuity or annuities shall cease and determine and the water undertaking and the whole lands estates properties and revenues of the Corporation shall be freed and discharged thereof.

PART XI.
—cont.

102.—(1) Any stock of the United Kingdom issued and any sums of money paid to the holder of any annuity or annuities in pursuance of the two immediately preceding sections shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which any such annuity or annuities was or were held immediately before the transfer day and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting any such annuity or annuities and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the said stock of the United Kingdom and such sum of money as aforesaid.

Stock of
United
Kingdom to
be held in
same rights.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific number of annuities shall be held to apply to the stock of the United Kingdom or sum of money which under the two immediately preceding sections is issued or (in the case of any sum of money) paid in substitution for such annuities as aforesaid.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the stock of the United Kingdom so issued to them or sums of money so paid to them in pursuance of the two immediately preceding sections for the annuity or annuities held by them and may hold dispose of or otherwise deal with such stock of the United Kingdom or sums of money in all respects as they might have held disposed of or otherwise dealt with the annuity or annuities for which the same are substituted.

103. Section 56 (Amendment of section 158 of the Act of 1925) of the Rochdale Corporation Act 1937 shall have effect and shall be deemed always to have had effect as if the words “ the sinking fund set apart under article III of the Rochdale Order 1880. or of ” were inserted in subsection (7) immediately after the word “ of ” where that word first occurs in the said subsection.

Further
amendment of
section 158
of Act of 1925.

104. Section 167 (Revenue and expenses of trading undertakings) of the Act of 1925 shall be read and have effect as if the words “ (4) the electricity undertaking (5) the markets undertaking (6) the heating undertaking and (7) the parcels service undertaking ” were substituted for the words “ and (4) the electricity undertaking.”

Amendment of
section 167 of
Act of 1925.

PART XI.
—cont.

Amendment of
section 168 of
Act of 1925.

105. Section 168 (Separate accounts in respect of certain undertakings) of the Act of 1925 shall be read and have effect as if the words "the electricity undertaking the markets undertaking the heating undertaking and the parcels service undertaking" and the words "in the case of the electricity undertaking to one-fifth and in the case of the markets undertaking the heating undertaking and the parcels service undertaking respectively to one-tenth" were respectively substituted for the words "and the electricity undertaking" and the words "and in the case of the electricity undertaking to one-fifth."

As to proof of
continued
existence of
pensioners.
1 Edw. 8. &
1 Geo. 6. c. 68.
2 & 3 Geo. 6.
c. 18.
7 & 8 Geo. 6.
c. 21.
10 & 11 Geo. 6.
c. 7.

Payment of
pension &c. of
person of
unsound mind.
53 & 54 Vict.
c. 5.

106. Notwithstanding anything in the Local Government Superannuation Acts 1937 and 1939 the Corporation shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 and 1947 to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

107.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 as amended by any enactment the Corporation may pay the whole of that sum or so much thereof as they think fit to the institution or person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

(2) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is in the opinion of the Corporation through mental infirmity incapable of managing his affairs the Corporation may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of his wife or husband or relations.

(3) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the Corporation shall give to the Master in Lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Corporation shall at the same time give notice in writing to that person in a form approved by the Master in Lunacy:

PART XI.
—cont.

Provided that the Corporation may with the approval of the Master in Lunacy exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exerciseable by the Corporation in relation to that person unless and until the master withdraws the notice.

(6) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercise of the said power.

108. The Corporation may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section.

As to
operation of
section 11 of
Rating and
Valuation Act
1925.

PART XII.

MISCELLANEOUS.

109.—(1) In this and the next succeeding section the expression—

“main river” shall have the same meaning as in the Land Drainage Act 1930 and the main river shall be as shown upon the map of any catchment area prepared in pursuance of section 5 of the said Act of 1930 and for the time being in force;

For preventing
obstruction to
streams by
culverts &c.
20 & 21 Geo. 5.
c. 44.

PART XII.

—cont.

“ stream ” shall include any part of any river and of any tributary thereof within the borough and any part of any stream brook and watercourse and of any channel culvert and water passage in or through or passing by the borough:

Provided that the expression “ stream ” shall not include any main river of the Mersey and Irwell Catchment Board but shall include tributaries of any such river in the borough which do not form part of a main river.

(2) Where any obstruction is or may be caused to any stream by any inadequate or insufficient culvert channel or other work the Corporation may reconstruct or remove such culvert channel or work or may construct and maintain a proper and sufficient culvert channel or other work.

(3) The Corporation and any other local authority or person affected may enter into and carry into effect agreements for and with respect to the carrying out of any works of construction reconstruction repair maintenance or removal for the purposes of this section.

(4) Nothing in this section shall be deemed to restrict the exercise by the Corporation of their powers in relation to culverts channels or other works.

(5) The provisions of this section shall not apply to any railway lands or works belonging to the commission and used by them for the purposes of their railways without their consent:

Provided that consent under this subsection shall not be unreasonably withheld and if any question arises as to whether or not consent is unreasonably withheld either party may require that it shall be referred to an arbitrator.

Cleansing of
streams.

110.—(1) If any stream or any part thereof is or becomes in such a state that the proper flow of water along the same is obstructed or impeded the Corporation may by notice require the owner or occupier of any lands abutting on any part of such stream which is in such a state as aforesaid or any person by whose act or default the proper flow of water in such stream is obstructed or impeded to cleanse or put in proper order such stream or part thereof so as to allow the proper flow of water in such stream and in the event of any person to whom any such notice is lawfully given by the Corporation neglecting to comply with the requirements of such notice within one month from the service on him of such notice the Corporation may if they think fit carry out the work required by the notice and recover the expense thereof from the person in default.

(2) Any person aggrieved by any requirement of the Corporation under subsection (1) of this section may appeal in accordance with section 145 (As to appeals) of this Act. PART XII.
—cont.

111.—(1) The Corporation during and for the purpose of the execution of any works forming part of the water undertaking or the heating undertaking may temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land house or building in the street from passing along and using the same. Temporary
stoppage of
streets.

(2) The Corporation shall provide reasonable access for foot passengers bona fide going to or from any such land house or building.

(3) Before exercising the powers of this section with respect to any street outside the borough the Corporation shall give not less than fourteen days' notice in writing to the highway authority having jurisdiction over such street and make such arrangements with the highway authority as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street during the execution of any works.

(4) The Corporation shall not exercise the powers of this section in such manner as to obstruct or interfere with the reasonable access to or exit from any station or depot of the commission.

112. Notwithstanding the provisions of any other enactment any water rents rates and charges recoverable by the Corporation in a court of summary jurisdiction may be recovered in the same manner and subject to the same provisions in respect of such recovery as the general rate. Recovery of
water rents
rates and
charges.

113.—(1) The Corporation may if they think fit run vehicles for the sole purpose of collecting conveying and delivering parcels not exceeding one hundred and twelve pounds in weight— Carriage of
parcels.

(a) on any road in the borough; and

(b) on any road outside the borough on which the Corporation are authorised to run a service of stage carriages or on any other road within a distance of one mile from any part of any such road. Provided such service was in existence on the thirteenth day of April one thousand nine hundred and forty-eight.

PART XII.

—cont.

(2) The Corporation may demand and take for the conveyance of parcels carried in any of their parcels delivery vehicles charges not exceeding such maximum charges as may from time to time be approved by the Minister of Transport.

23 & 24 Geo. 5.
c. 53.

(3) Nothing in this section shall relieve the Corporation from the necessity of obtaining the appropriate licence under the Road and Rail Traffic Act 1933 in respect of any goods vehicle to which that Act applies.

56 & 57 Vict.
c. 38.

(4) The Corporation may in connection with and for the purposes of their parcels delivery service provide and fit up offices for the receipt and dispatch of parcels.

(5) The Corporation shall perform in respect of the vehicles run by them in pursuance of subsection (1) of this section all such services with regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(6) The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts relating to their parcels delivery service.

(7) Unless Parliament otherwise determines this section shall expire on the first day of August one thousand nine hundred and fifty-eight:

52 & 53 Vict.
c. 63.

Provided that on the expiration of this section subsection (2) of section 38 of the Interpretation Act 1889 shall apply as if this section had then been repealed.

Definition of
passenger
transport
undertaking.

114. As from the passing of this Act the tramways undertaking of the Corporation which includes their tramways and omnibus undertakings shall be known as the passenger transport undertaking of the Corporation.

Power to
arrest persons
having in their
possession or
conveying
stolen goods.

115.—(1) Any police constable may stop search and take into custody any person who has in his possession or is conveying in any manner anything which may be reasonably suspected of being stolen or unlawfully obtained and such person shall unless he gives an account to the satisfaction of a court of summary jurisdiction of how he came by the same be liable to a penalty of not more than five pounds or (except in the case of a first conviction) in the discretion of the court to imprisonment for any period not exceeding two months.

(2) The powers of this section shall not be exercised with respect to licensed pawnbrokers or their servants apprentices or agents in a licensed pawnbroker's shop.

116. As from the commencement of this section if any person for the purpose of obtaining for himself or any other person a rebate in the rent of any house belonging to the Corporation or a reduction in the amount of any other payment due to the Corporation—

PART XII
—cont.

False statements to obtain rent rebate &c.

(a) knowingly makes to the Corporation or any of their employees a false statement or false representation relating to his or that other person's ability to pay the rent or make the payment; or

(b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular;

he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and imprisonment.

117.—(1) Any person who shall wilfully or negligently obstruct or interfere with the convenient access to any police telephone call box or police shelter or box or who shall remove or efface any plate or mark indicating the position of such call box shelter or box shall be liable to a penalty not exceeding five pounds and the Corporation may recover the expenses of replacement and making good from such person.

Interference with police call boxes &c.

(2) Any person who shall knowingly and improperly use or cause to be used by means of any false or malicious statement message or otherwise any police telephone call box or (for the purpose of requiring the services of the police or an ambulance) any telephone call box of the Post Office telephone service shall for every such offence be liable to a penalty not exceeding five pounds.

118.—(1) It shall be lawful for the Corporation—

As to barriers &c. in streets.

(a) at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or on emergencies to cause barricades to be erected along or across any of the streets of the borough;

(b) at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports or illuminations to cause flagpoles and pylons to be erected in any of such streets for the purpose of displaying decorations;

and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade flagpole pylon or decorations or any part thereof shall be liable to a penalty not exceeding forty shillings.

PART XII.
—cont.

(2) For the purpose of the erection of such barricades flag-poles and pylons the Corporation may construct or place and maintain in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

(3) The powers of this section shall not be exercised in such a manner as to cause obstruction to or interference with the access to or exit from any station or depot of the commission except with their consent.

Control of
sirens &c. used
in factories
&c.
35 & 36 Vict.
c. 61.

119. As from the commencement of this section section 2 of the Steam Whistles Act 1872 shall in its application to the borough be read and have effect as if the words "mechanically operated whistle trumpet siren or hooter" were therein substituted for the words "steam whistle or steam trumpet."

Further
provision for
public and
other buildings.

120.—(1) If it appears to the Corporation that for the purpose of preventing fire or injury or danger to persons resorting to any building to which section 59 of the Act of 1936 applies—

- (a) the apparatus or fittings for lighting or heating the buildings require alteration; or
- (b) the arrangement of the chairs and seating requires alteration; or
- (c) any floor requires strengthening in order to prevent overloading;

the Corporation may by notice require the owner of the building to make such provision in regard to the matters aforesaid as may be necessary:

Provided that—

- (i) paragraphs (a) and (b) of this subsection shall not apply to premises in respect of which a licence under the Theatres Act 1843 or Part IV of the Public Health Acts Amendment Act 1890 as extended by this Act or the Cinematograph Act 1909 is for the time being in force;
- (ii) nothing in this section shall affect the operation of the Factories Act 1937 or any regulation or order made thereunder.

9 Edw. 7.
c. 30.

1 Edw. 8. &
1. Geo. 6.
c. 67.

(2) The provisions of Part XII of the Act of 1936 with respect to appeals against and the enforcement of notices requiring the execution of works shall apply in relation to any notice given under this section.

121. The Corporation may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sums as they may from time to time think fit not exceeding in any one year the sum of two hundred and fifty pounds.

PART XII.

—cont.

As to prizes
for garden
competitions.

122.—(1) It shall be lawful for the Corporation—

Provision of
lectures and
exhibitions
&c.

(a) to provide suitable lecture rooms and to let such rooms; and

(b) to provide suitable rooms for art exhibitions and to let such rooms.

(2) The Corporation may use or allow to be used or let any part of any public library provided by them and not at the time required for the purpose of a library for public and other meetings and for lectures exhibitions and performances for or in connection with the advancement of art education drama science music or literature.

(3) The Corporation may themselves provide or arrange for the provision of or contribute towards the expenses of any lectures or exhibitions given in pursuance of this section and may make or allow to be made such charges as they may think fit in connection therewith.

(4) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures or exhibitions given in pursuance of this section.

(5) Nothing in this section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(6) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

(7) No power conferred upon the Corporation by this section shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

PART XII.
—cont.

(8) All money received by the Corporation in the exercise of the powers of this section after defraying the expenditure incurred under this section shall be applied only for the purposes of the advancement of art education drama science music or literature.

Power to
publish
bulletins &c.

123. In connection with their powers under section 122 (Provision of lectures and exhibitions &c.) of this Act and under the Public Libraries Acts 1892 to 1919 the Corporation may publish and sell or dispose of bulletins journals periodicals and leaflets and documents of historical or literary interest having a local connection.

Provision of
meals and
refreshments
in lodging-
houses.

124. Section 72 of the Housing Act 1936 shall in its application to the borough be read and have effect as if the words " and may provide in any lodging-house so erected converted or acquired meals and refreshments (excluding intoxicating liquor) at reasonable prices to persons occupying accommodation therein " were added at the end of subsection (2) thereof:

Provided that the prices charged for such meals and refreshments shall be so fixed as to cover the expenses incurred by the Corporation in the provision thereof and to secure that so far as reasonably practicable no charge in respect of such meals or refreshments shall fall on the general rate fund or the general rate.

Dwelling-
houses for
employees.

125.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to them and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation.

(2) Nothing in this section shall empower the Corporation to create or permit a nuisance.

Payment of
funeral
expenses of
deceased
employees.

126. On the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest the Corporation may if they think fit pay out of the above sum the funeral expenses of the deceased employee or so much thereof as they consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946 and the amount

of the expenses so paid shall be deemed to have been paid for the personal representative of the person to whom the sum was due from the Corporation and the Corporation and any officer of the Corporation making such payment shall be discharged from all liability in respect of such payment.

PART XII.
—cont.

127.—(1) While any child is entering or leaving any school provided or maintained by the Corporation as the local education authority or is entering or leaving any yard or playground appurtenant to any such school or is in any such yard or playground no person shall solicit such child—

Prohibition on solicitation of school children to sell &c. articles &c. at schools.

- (a) to sell or give to such person any article or thing; or
- (b) to exchange with such person any article or thing for any other article or thing.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

128.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for internal combustion engines.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing in this subsection shall apply to any stationary internal combustion engine belonging to the commission and used by them for the purposes of their undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

129.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such conditions as the Corporation may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

Restriction on erection of stands &c.

PART XII.
—cont.

(2) Any person aggrieved by any conditions prescribed by the Corporation under subsection (1) of this section may appeal in accordance with section 145 (As to appeals) of this Act:

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Corporation have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any stand or structure erected by a person who is a proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(5) Nothing in this section shall render lawful the erection of any stand or structure which would not have been lawful apart from the provisions of this section.

As to
maintenance
of cemeteries
&c.

130.—(1) The Corporation may in connection with the maintenance of any cemetery provided by them under the Public Health Acts or any burial ground provided by them under the Burial Acts 1852 to 1906 or any closed or disused burial ground maintainable by the Corporation alter repair straighten or maintain any tombstone or monument and put in order and maintain any grave space therein and where a grave space has been allowed to fall into a neglected condition remove the kerbs surrounding the grave space.

(2) The Corporation shall cause to be made a record of any kerb surrounding a grave space removed under the powers of this section showing the particulars respecting each kerb so removed as a separate entry and a copy of such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(3) Before the Corporation exercise any of the powers of this section they shall publish once at least in each of two successive weeks in one or more newspapers circulating in the borough notice of their intention so to do together with a statement of the works to be carried out and such notice shall also state that any person desiring to object to the carrying out of any such works shall give notice in writing to the Corporation of his objection and the grounds thereof within the date stated in the notice (which date shall not be earlier than ten days after the last publication of the notice) If any

objection shall be so given to the Corporation and not withdrawn the works to which the objection relates shall not be carried out without the consent of the Secretary of State.

PART XII.
—cont.

131.—(1) A person shall not cause the body of any person to be buried in a grave in the borough not being a vault in such a manner that any part of the coffin containing the body shall be at a depth less than three feet below the level of the surface of the ground adjoining the grave. Depths of graves.

(2) Any person having the preparation or the immediate charge of the preparation of a grave to receive a coffin who permits the coffin to be buried in such a manner as to contravene the provisions of this section and any person having the control of a burial ground who knowingly permits any coffin to be buried in a grave therein in a manner contrary to the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) In this section—

“grave” means a burial place formed in the ground by excavation and without any internal wall of brickwork or stonework or any other artificial lining; and

“vault” includes underground burial places of every description except graves.

132.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or under any local enactment for the time being in force in the borough or in a burial ground provided under the Burial Acts 1852 to 1906. Extension of section 2 (3) of Public Health (Interments) Act 1879. 42 & 43 Vict. c. 31.

(2) Any such sum shall be invested in statutory securities or in manner authorised by section 158 (Consolidated loans fund) of the Act of 1925 and the interest thereof applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit.

(3) Any such capital sum and the interest thereof shall be shown separately in the accounts of the Corporation relating to their cemetery undertaking but otherwise the said interest shall be paid into the fund to which receipts derived from the cemetery undertaking are paid.

133.—(1) Any agreement entered into between the Corporation and the parent or guardian of a pupil at any secondary school may make provision for the payment by such parent or guardian to the Corporation of any sum not exceeding ten School agreements.

PART XII.
—cont.

pounds in the event of the pupil ceasing without reasonable cause to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Corporation shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case.

(2) For the purposes of this section the expression "secondary school" includes—

(a) a secondary school as defined by section 114 of the Education Act 1944; and

(b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of the said Act is provided.

Collection and
delivery of
washing.

134.—(1) The Corporation may collect and may carry to or from any washhouse provided by them clothes and other articles intended to be washed or which have been washed at such washhouse and when exercising the powers of this section shall make charges for the collection and carriage of such clothes and other articles:

Provided that the charges to be made under this section shall be such as will produce a revenue sufficient to meet all expenditure incurred by the Corporation under this section.

(2) Nothing in this section shall relieve the Corporation from the necessity of obtaining the appropriate licence under the Road and Rail Traffic Act 1933 in respect of any goods vehicle to which that Act applies.

Subscriptions
to local
government
associations
&c. and other
expenses.

135. The Corporation may pay—

(a) reasonable subscriptions (whether annually or otherwise) to the funds of any association formed for the purpose of consultation as to matters affecting the Corporation or of interest to them as a Corporation or of discussion of such matters or to the funds of any scientific or other society or body (not carrying on business for profit) which or the members of which are engaged in investigations or the keeping of records of use or value to the Corporation and any reasonable expenses of the attendance of any members officers or nominees of the Corporation at conferences or meetings of any such association society or body and

the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) reasonable expenses in connection with the provision of public entertainments on the occasion of public ceremony or rejoicing;

(c) reasonable expenses in connection with the attendance of members of their fire brigade at meetings and competitions of fire brigades;

(d) reasonable expenses in connection with the presentation of the freedom of the borough to persons whom they may resolve to admit as honorary freemen and in connection with the reception and entertainment of distinguished persons residing in or visiting the borough.

136.—(1) The Corporation may upon and subject to such terms and conditions (if any) as may be agreed between them and any body rendering public service to the inhabitants of the borough by means of cultural activities carried on either wholly or partly within the borough contribute such sum or sums as they may from time to time determine in the circumstances of the case to be reasonable to the funds or towards the expenses of such body.

Contributions
to cultural
bodies.

(2) In this section the expression—

“ body ” includes an association institution society or similar organisation and a company howsoever constituted; and

“ cultural activities ” includes the provision of public entertainment having cultural value.

(3) Nothing in this section shall affect or derogate from the provisions of any other enactment (including an enactment in this Act) enabling the Corporation to provide or contribute towards the provision of music or any entertainment.

137.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Corporation from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall mutatis mutandis apply and have effect for the purposes of this subsection.

As to use of
parts of
recreation
grounds for
parking places.
15 & 16 Geo. 5.
c. 71.
25 & 26 Geo. 5.
c. 47.

PART XII.

—cont.

20 & 21 Geo. 5.
c. 43.Acquisition
of certain
residuals &c.
and disposal
thereof.

(2) The provisions of section 90 of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section.

138.—(1) The Corporation may acquire and convert utilise treat or otherwise make merchantable any condemned meat inedible offals blood and other residuals and by-products which may at any time be in any slaughter-house or abattoir in the borough.

(2) Any product manufactured or obtained under the powers of this section may be sold or otherwise disposed of by the Corporation.

Amendment of
section 69 of
Act of 1937.

139. Section 69 (Compensation for injuring lamps &c.) of the Rochdale Corporation Act 1937 shall be read and have effect as if the words "twenty pounds" were substituted for the words "ten pounds".

PART XIII.

GENERAL.

Service of
demand notes.

140. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

Liability of
directors &c.
II & 12 Geo. 6.
c. 38.

141.—(1) Where any company within the meaning of the Companies Act 1948 commits any offence for which a penalty is provided by the sections and Part of this Act hereinafter mentioned proceedings may be taken in respect of such offence against all or any of the directors and managers and the secretary or other officer of such company as well as or instead of against the company and every such director manager secretary and officer shall be liable on conviction to the like penalty as if he were the person committing the offence unless he proves to the satisfaction of the court—

(a) that the act which constituted the offence took place without his knowledge consent or connivance; and

(b) that he was not guilty of any negligence in regard to securing the proper execution of this Act.

(2) The sections and Part of this Act referred to in this section are—

Section 46 (Registration of hairdressers and barbers and premises);

Section 58 (Registration of entertainment proprietors);
and

Part VIII (Establishments for massage or special treatment).

142. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be—

PART XIII.

—cont.

Confirming
authority for
byelaws.

(a) in the case of byelaws made under the following sections of this Act:—

Section 57 (Byelaws as to pleasure fairs); and

Section 66 (Byelaws as to establishments for
massage or special treatment);

the Secretary of State;

(b) in the case of byelaws made under section 50 (Byelaws as to inspection of meat) of this Act the Minister of Food; and

(c) in all other cases the Minister.

143.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Commence-
ment of
certain
provisions of
this Act.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month or in the case of section 51 (Prohibition of smoke in certain areas) of this Act not less than twelve months after the date of the first publication of the advertisement:

Provided that if the provision is one which requires the licensing or registration of any person or premises the application for the licence or registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act:—

Section 39 (Restrictions on attendance at schools and places of assembly);

Section 46 (Registration of hairdressers and barbers and premises);

Section 51 (Prohibition of smoke in certain areas);

Section 52 (Prevention of smoke from industrial furnaces);

Section 56 (Dispensation by Corporation with bonds by theatre managers);

PART XIII.
—cont.

Section 58 (Registration of entertainment proprietors);

Section 90 (Amendment of section 27 of Weights and Measures Act 1889 in its application to the borough);

Section 91 (As to sale of coal or coke otherwise than in sacks from a vehicle);

Section 116 (False statements to obtain rent rebate &c.);

Section 119 (Control of sirens &c. used in factories &c.);

and to Part VIII (Establishments for massage or special treatment) of this Act:

Provided that—

(a) before passing a resolution fixing the date upon which the said section 51 shall come into operation the Corporation shall consult the Minister;

(b) this section shall not apply to the application of the provisions of the said section 51 to an area other than the central area as defined in that section.

(4) As respects any of the said provisions which requires the licensing or registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such licence or registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 145 (As to appeals) of this Act.

Restriction on
right to
prosecute.

144. Section 298 of the Act of 1936 shall apply to offences created by or under Part III (Streets and buildings) Part IV (Sewers and drains) and Part V (Infectious disease sanitary provisions and nuisances) of this Act as if they were offences created by or under that Act.

As to appeals.

145.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part III (Streets and buildings) Part IV (Sewers and drains) (other than a requirement under section 34 (As to

defective drains &c.) of this Act) Part V (Infectious disease sanitary provisions and nuisances) or Part VIII (Establishments for massage or special treatment) of this Act or section 58 (Registration of entertainment proprietors) section 110 (Cleansing of streams) or section 129 (Restriction on erection of stands &c.) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) subject to the proviso to subsection (2) of section 129 (Restriction on erection of stands &c.) of this Act

PART XIII.
—cont.

any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

In executing
works for
owner
Corporation
liable for
negligence
only.

146. Whenever the Corporation the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportion-
ment of
expenses in
case of joint
owners.

147. Where under the provisions of any enactment for the time being in force within the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those enactments or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Arbitration.

148. Where under this Act any question or dispute is to be referred to an arbitrator or determined by arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless other provision is made the reference shall be to an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Acts 1889 to 1934 or any statutory re-enactment or modification thereof for the time being in force shall apply accordingly.

149. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and subsections (2) to (5) of section 290 of the Act of 1933 shall apply accordingly.

PART XIII.
—cont.
Inquiries by
Minister.

150. The Minister of Fuel and Power may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and subsections (2) to (5) of section 290 of the Act of 1933 shall apply accordingly.

Inquiries by
Minister of
Fuel and
Power.

151. When any compensation costs damages or expenses is or are by any local enactment for the time being in force within the borough directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936:

Compensation
how to be
determined.

Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

152. For the further protection of the authority and the board (each of whom are in this section referred to as "the electricity board") the following provisions shall notwithstanding anything in this Act and unless otherwise agreed in writing between the Corporation and the electricity board apply and have effect:—

For further
protection of
authority
and board.

(1) In this section unless the subject or context otherwise requires the expression "apparatus" means all or any electric lines and works (as respectively defined by the Electric Lighting Act 1882) belonging to the electricity board:

(2) Not less than twenty-eight days before the Corporation in the exercise of the powers of section 13 (Rounding of corners at street junctions) of this Act add to the carriageway of a street any portion of a footway in or under which any apparatus is for the time being situate the Corporation shall give to the electricity board notice of their intention so to do accompanied by a plan and section of the intended alteration and the electricity board may (and if reasonably so required by the Corporation shall) alter the position of the apparatus to such other position in or under the carriageway or footway of the street as may be reasonable:

PART. XIII.
—cont.

- (3) The electricity board shall within twenty-eight days from the receipt of a notice from the Corporation under subsection (2) of this section give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) and shall at the same time deliver to the Corporation a plan and section of the proposed alterations. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be reasonable:
- (4) The Corporation shall repay to the electricity board the reasonable expenses incurred by the electricity board of or in connection with the alteration of the position of any apparatus under subsections (2) and (3) of this section and the reasonable costs of and incidental to—
- (i) the cutting off of apparatus from any other apparatus; and
 - (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection:
- (5) The Corporation shall not exercise any of the powers of the following sections of this Act:—
- Section 16 (Power to place fences near school entrances &c.);
 - Section 21 (Planting of trees in private streets);
 - Section 61 (Power to erect weighbridges); and
 - Section 118 (As to barriers &c. in streets);
- so as to cause damage to or obstruct or render less convenient the access to any apparatus:
- (6) Where the Corporation under the powers of section 111 (Temporary stoppage of streets) of this Act stop up temporarily any street in which any apparatus is situate they shall provide reasonable access for the electricity board their officers servants and workmen for the purpose of enabling them to inspect repair and renew any such apparatus or to lay down or place new apparatus:
- (7) Any difference which may arise between the Corporation and the electricity board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to arbitration.

153.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto:—

PART XIII.
—cont.

Application
of provisions
of Act of 1936.

- Section 271 (Interpretation of “provide”);
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 276 (Power of local authority to sell certain materials);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 277 287 289 291 292 294 295 and 329 shall only apply to the provisions in Part III (Streets and buildings) Part IV (Sewers and drains) Part V (Infectious disease sanitary provisions and nuisances) and Part XII (Miscellaneous) of this Act:

PART XIII.
—cont.

Provided also that the said sections 287 and 288 shall not apply to the provisions of section 45 (Prohibition on sale of verminous articles) and section 46 (Registration of hairdressers and barbers and premises) of this Act.

(2) Sections 283 284 285 and 304 of the Act of 1936 shall extend and apply in relation to any local enactment for the time being in force within the borough as if such sections were re-enacted in that local enactment and in terms made applicable thereto.

Repeal.

154.—(1) The following enactments are hereby repealed:—

16 & 17 Vict.
c. ccxx.

The Rochdale Improvement Act 1853.

Section LXXIX (Depth of soil over coffins).

The Act of 1925.

Section 102 (Power to close Sunday schools and exclude children from entertainments);

Section 103 (Restriction on attendance of children at places of assembly);

Section 119 (Byelaws as to inspection of meat);

Section 180 (Apportionment of expenses between different owners);

Section 181 (In executing works for owner Corporation liable for negligence only);

Section 183 (Consent of Corporation to be in writing);

Section 195 (Judges &c. not disqualified);

Section 196 (Compensation how to be determined).

22 & 23 Geo. 5.
c. xi.

Rochdale Corporation Act 1932.

Section 11 (Power to place fences near school entrances);

Section 38 (Damages and charges to be settled by court).

Rochdale Corporation Act 1937.

Section 33 (As to neglected sites);

Section 53 (Amendment of section 167 of Act of 1925);

Section 54 (Amendment of section 168 of Act of 1925);

Section 55 (Renewal and repairs fund);

Section 78 (Damages and charges to be settled by court).

(2) The following enactments shall be repealed on and from the first day of September one thousand nine hundred and forty-eight:—

PART XIII.
—cont.

The Act of 1872.

Section 109 (Cattle market and cattle fair tolls
Schedule (D));

Schedule (D) (Cattle market and cattle fair tolls).

155. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for
town and
country
planning.

156. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of moneys to be borrowed under this Act for that purpose.

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

CATTLE MARKET AND CATTLE FAIR TOLLS.

Sales by auction—	s.	d.
For each beast or animal offered for sale by auction (whether sold or not) not exceeding	2	0
Other tolls—		
For each stallion or entire horse not exceeding	2	0
For each horse (other than a stallion or entire horse) or pony not exceeding	1	0
For each ass or mule not exceeding	0	9
For each bull bullock cow steer or heifer not exceeding	0	9
For each calf or pig not exceeding	0	4
For each sheep ram lamb or goat not exceeding ...	0	3
For every other animal not before named in this schedule brought into the market for sale or show not exceeding	2	0

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